

SOLICITATION, OFFER, AND AWARD (Continued) <i>(Construction, Alteration, or Repair)</i>										
OFFER (Must be fully completed by offeror)										
14. NAME AND ADDRESS OF OFFEROR <i>(Include ZIP Code)</i>					15. TELEPHONE NO. <i>(Include area code)</i>					
CODE FACILITY CODE					16. REMITTANCE ADDRESS <i>(Include only if different than Item 14)</i> See Item 14					
					17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. <i>(Insert any number equal to or greater than the minimum requirements stated in Item 13D. Failure to insert any number means the offeror accepts the minimum in Item 13D.)</i>					
AMOUNTS		SEE SCHEDULE OF PRICES								
18. The offeror agrees to furnish any required performance and payment bonds.										
19. ACKNOWLEDGMENT OF AMENDMENTS <i>(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)</i>										
AMENDMENT NO.										
DATE										
20A. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER <i>(Type or print)</i>					20B. SIGNATURE			20C. OFFER DATE		
AWARD (To be completed by Government)										
21. ITEMS ACCEPTED:										
22. AMOUNT		23. ACCOUNTING AND APPROPRIATION DATA								
24. SUBMIT INVOICES TO ADDRESS SHOWN IN <i>(4 copies unless otherwise specified)</i>				ITEM	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO ☐ 10 U.S.C. 2304(c) ☐ 41 U.S.C. 253(c)					
26. ADMINISTERED BY			CODE		27. PAYMENT WILL BE MADE BY: CODE					
CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE										
☐ 28. NEGOTIATED AGREEMENT <i>(Contractor is required to sign this document and return _____ copies to issuing office.)</i> Contractor agrees to furnish and deliver all items or perform all work, requisitions identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications or incorporated by reference in or attached to this contract.					☐ 29. AWARD <i>(Contractor is not required to sign this document.)</i> Your offer on this solicitation, is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.					
30A. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN <i>(Type or print)</i>					31A. NAME OF CONTRACTING OFFICER <i>(Type or print)</i>					
30B. SIGNATURE			30C. DATE		TEL: EMAIL:			31B. UNITED STATES OF AMERICA BY		
								31C. AWARD DATE		

Section 00 10 00 - Solicitation

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT Job	UNIT PRICE	AMOUNT
0001	SINGLE AWARD TASK ORDER CONTRACT FFP This is a five year Indefinite Delivery Indefinite Quantity (IDIQ) Single Award Task Order Contract (SATOC) for electrical mission requirements. The total capacity is \$8,000,000.00. FOB: Destination PSC CD: Z1NE				
NET AMT					

DELIVERY INFORMATION

CLIN	DELIVERY DATE	QUANTITY	SHIP TO ADDRESS	DODAAC / CAGE
0001	POP 15-AUG-2025 TO 14-AUG-2030	N/A	N/A FOB: Destination	

IDIQ SATOC SOW
IDIQ SATOC SOW

BALTIMORE REGIONAL SINGLE AWARD TASK ORDER CONTRACT**1.0 GENERAL:**

1.0.1 Under this contract, the Contractor shall provide all management, plans, supervision, labor, equipment and materials necessary to perform design; construction; retrofitting or replacement related to electrical work under Construction or Design-Construct (Design/Build) negotiated Firm-Fixed-Price Task Orders (TO's). (For purposes of this base contract solicitation, the term Design/Construct and Design/Build are understood to be interchangeable and one in the same).

1.0.2 PLACE OF PERFORMANCE: The work will be performed for the United States Army Corps of Engineers (USACE) within the boundaries of the Baltimore District with the primary work performed at Washington Aqueduct, Washington, District of Columbia.

1.0.3 PERIOD OF PERFORMANCE: Any task orders issued underneath this contract shall be valid for a duration of 5-year. The start and end dates will be determined by the Contracting Officer.

1.0.4 Negotiated firm-fixed-priced Construction or Design-Construct Task Orders (TO's) will be awarded against the contract. The outcome is to provide the Government with cost effective rapid

response for construction and/or dismantling, demolition or removal of electrical improvements relating, but not limited to all facets of construction including civil works. Projects may be fast-track design-build requiring appropriate design services to perform the construction efforts. The orders may include within them the requirement to perform preparation of Operations & Maintenance (O&M) Manuals; and for design-build task orders, the requirement to prepare specifications and drawings.

1.0.5 The work to be performed under this contract includes engineering and construction services for the repair or upgrade of electrical equipment within a complex water treatment plant that consists of, but not limited to, typical elements for repairs, rehabilitation, modification, upgrades and renovations of electrical systems in an industrial environment. Work is to be performed within the boundaries of the Baltimore District primarily at Washington Aqueduct facilities. Typical work may include but is not limited to repair and renovation of existing facilities of the following types: industrial, power distribution, pumping stations, water treatment process equipment, office and electrical infrastructure such as motors, variable frequency drives, circuit breakers, switchgears, power protection relays, etc. Representative work examples may include SCADA improvements, power protection system upgrades, electrical distribution service improvements, electrical studies, arc flash safety assessments, coordination studies, generator upgrades, medium to low voltage distribution equipment upgrades, industrial electrical equipment maintenance and replacement, etc. Work may also include construction of new facilities. Representative work examples may include installation of new generators, variable frequency drives, motor control centers, transformers, etc. Work may be associated with both non-military and military construction.

1.0.6 All TO work shall be performed in compliance with the most current Federal, State and local regulatory requirements and the Contractor shall provide all required applications and/or permitting requirements in compliance with FAR 52.236-7 Permits and Responsibilities. (NOV 1991)

1.0.7 For those TO's that are Design/Build, the Contractor shall be required to provide a design that is certified by an electrical Professional Engineer (PE) having held a license and certifying designs for the last five (5) years. The approved designs will then be the basis for performing the construction portion of the design/build. The cost associated with the "design" will be negotiated as part of the TO's total price.

1.0.8 The Contractor shall prepare shop drawings/submittals as required under the submittal register and as-built drawings for each electrical TO.

1.0.9 The Contractor shall provide all management, supervision, quality control and safety oversight. Work associated with the electrical TO's may run consecutively or concurrently. The Contractor is required to provide the proper planning, scheduling, material procurement, and simultaneous management of multiple work crews at various locations. The Contractor must execute a flow of independent task orders and adjust his craft mix without impacting other Contractors or tenant operations. The Contractor must effectively manage his subcontractors to insure that the government is provided a "seamless" level of effort on each task order. The Contractor shall provide a full-time superintendent and site safety and health officer. The role and cost will be negotiated on a task order by task order basis.

1.0.10 The Contractor shall provide the manpower and equipment to accept and unload all materials delivered to the sites for the electrical work under this contract. The government will not accept deliveries, nor will government equipment and manpower be used for material handling.

1.0.11 TO's issued under this contract will have a task order performance period. The time for completion of the work under the task order shall be stated therein. The Contractor is required to complete the task order work within the task order performance period or liquidated damages will be assessed. The period of performance shall include time for all activities from date of issuance of the

task, including any ordering of materials and time required for final clean-up, inspection, acceptance and close out of the task order. The Contractor shall notify the Contracting Officer Representative (COR), in writing at least thirty (30) calendar days in advance of the date the work will be fully completed and ready for final inspection.

1.0.12 The Contractor's management/supervision shall interface with the Contracting Officer (KO) and/or the Contracting Officer's designee. The Contracting Officer Representative (COR) is responsible for the day to day Government/Contractor liaison, submittal review/approval, phased inspections, coordination with the tenant, payment requests approval etc.

1.0.13 Upon receipt of a Government executed task order, the Contractor shall:

1.0.13.0 Incorporate the task order into the progress schedule/report. The Contractor shall use the contract number and task order number for internal control. All proposals, schedules, vouchers, correspondence, etc., must cite the Government contract and task order number, as it is the Government's tracking mechanism.

1.0.14 Coordinate the start of work with the COR via attendance at a pre-construction conference, prior to the actual commencement of work.

1.0.14.0 In performance of work under this contract, the Contractor shall:

1.0.14.1 Conduct bi-weekly job site progress meetings.

1.0.14.2 Arrange with the COR a sequence of procedures, means of access, space for storage of materials and equipment, delivery of materials, use of approaches, corridors, and stairways. Since space for storage may be limited in work areas, the majority of storage may be outside or at the Contractor's assigned area. Only materials to be used for work under this contract may be stored at the assigned area.

1.0.14.3 Request, in writing, fourteen (14) calendar days in advance of any utility interruptions.

1.0.14.4 When working on a military installation, comply with all base requirements related, but not limited to security, safety, fire prevention/protection, radiation prevention/protection and utility interruption or use.

1.0.14.5 Delivery of materials and equipment shall be made with a minimum of interference with the installation staff.

1.0.14.6 The Contractor shall give advance notice of the date work will be fully completed and ready for final inspection. The Contractor shall notify the Contracting Officer's Representative, in writing, upon completion of each individual task order.

1.1 CONSTRUCTION TASK ORDER – GENERAL:

1.1.1 After a site visit to the task order location with the Government, the Contractor shall assist the Government to finalize the scope of work based on an existing design and/or a statement of need. This price will be based on work items as applicable. The Contractor's pre-task order scoping and proposal effort shall be considered a cost of doing business and shall not be paid for under any post task award line item.

1.1.2 Preparation of proposals by the Contractor shall not constitute an obligation by the Government to issue a task order for performance, nor is the request for proposal to be construed as the Contractor's authority to commence construction activity.

1.1.3 The **bare costs** of labor, material and equipment will be used.

1.2 DESIGN-BUILD TASK ORDER – GENERAL:

1.2.1 A portion of a design-build task order issued under this contract shall include design work that shall be negotiated. The Contractor and the government shall jointly finalize a task order scope of work (i.e. via site visits or project meetings) which will be used to establish sufficient clarity to generate a fixed-priced design and construction task order. This is a Task Order Construction Contract and no task orders will be issued for design services only.

1.2.2 Design costs shall be based on proposed professional man-hours that will be negotiated on each order as a separate element from the construction portion of the task order. Applicable disciplines, associated labor rates, overhead and profit will be applied as set in the base contract.

1.2.3 The value of the construction effort will be based on work items as discussed in section 1.1
CONSTRUCTION TASK ORDER – GENERAL

1.2.4 During the design effort, the design will be reviewed at multiple stages of development as defined in the design portion of the task order scope of work. The Contractor must design the project to be within the task order price. Should the designer's efforts, through no fault of government, result in exceeding the fixed price of the task order, the Government reserves the right to have the Contractor, at his own expense, revise (i.e. de-scope) the design to assure the product can be completed within the price of the task order. However, the government shall not direct the Contractor to construct a product for a price (as established under terms of this contract) that will exceed the task order price, without the revisions being further defined and a contract modification being issued.

1.2.5 For the design effort the Contractor will provide an estimate utilizing the design schedule (reference section 00010) for each design deliverable specified in the task order scope of work. The overhead and profit should be presented in a manner to allow clear understanding of the overhead and profit for the company providing the design/engineering services and the prime Contractors office overhead and profit related to the design phase of the project.

1.3 ORDERING PROCEDURES:

1.3.1 As the need exists for performance under the terms of this contract, the Contracting Officer or authorized representative shall notify the Contractor of an existing requirement.

1.3.2 Upon receipt of this notification, the Contractor shall respond to the needs of the Government by:

1.3.2.1 Visiting the proposed work site in the company of the Contracting Officer's Technical Representative or authorized representative, or

1.3.2.2 Establishing verbal agreement with the Contracting Officer's Representative or authorized representative to further define the scope of the requirement.

1.3.3 With the establishment of the scope of work of the individual project, the Contracting Officer, shall issue a "Request for Proposal" for the individual task order. Upon receipt of the Request for Proposal, the Contractor shall then submit a proposal (along with narrative to document the site investigation) for accomplishment of the task order utilizing EXCEL software or equivalent & submit in both paper & electronic medium. This proposal shall include a cover page which includes the date of proposal and contract, task order numbers, title, and location of task order with summary of proposed price.

1.3.3.1 A Technical Approach Narrative is to be submitted with each task order. This narrative should describe the contractor's approach/rationale to executing the task order and should be reflected in the pricing. This narrative shall include, but is not limited to, topics such as personnel/labor selection, intended work hours/shift work, phasing/sequencing, material and equipment selection, selection of manufacturer/subcontractor, etc.

1.3.3.2 Construction Task Orders:

1.3.3.2.1 Applicable estimating software, shall serve as the basis for establishing value of the work to be performed.

1.3.3.2.2 Work to be included in an individual requirement must be proposed by the Contractor using an acceptable proposal format to be agreed on between the Government and the Contractor at that time. **Any items exceeding \$2,500.00 must be supported by a minimum of three quotations from suppliers/installers.**

1.3.3.2.3 Upon receipt of a Request for Proposal for an individual task order, the Contractor shall be notified of the time schedule for submittal of a proposal

1.3.3.2.4 The Contractor shall notify the government within five working days of receipt of a Request for Proposal for an individual task order, if the Contractor cannot meet the aforementioned proposal due date or project schedule duration and must provide the reason(s) why. The Contractor shall also propose an alternate date/schedule, subject to the approval by the Government. The government reserves the right to unilaterally deny any extension.

1.3.3.2.5 The Contractor shall transmit proposals electronically, by means of computer disk or network connection, when so directed by the Government. Such electronic submissions shall be readable/writable using Microsoft Office, Professional Versions 2010 or later.

1.3.3.2.6 The Contractor shall use the Government work/task order number to identify all proposals, submittals, and other documents submitted to the Government.

1.3.3.2.7 The proposal shall be comprised of a "Detailed Estimate" with a breakdown to identify "individual line items", units of measure, quantities, labor, material, rental cost, and equipment summarized into a "bare cost" total for each subcontractor and for the prime Contractor separately; add the subtotal of the two and apply the city cost index (if not already applied) to arrive at the total direct and indirect subtotal; add taxes and subtotal. The sum of the two shall be submitted for the total proposal price.

1.3.4 The proposal submitted by the Contractor shall use the Construction Specification Institute (CSI) format. In the case of a proposal requiring a specialty subcontractor due to the highly technical nature of the work a "Detailed Estimate" approach shall be applied for that portion of the proposal. The proposal shall also be of sufficient detail to identify and quantify the use of all line items in detail compatible with the information contained within the solicitation scope of work. Upon receipt of the Contractor's proposal, the Government shall review the proposal for completeness, accuracy and reasonableness.

1.3.5 Preparation of proposals by the Contractor shall not constitute an obligation by the Government to award a task order, nor shall the Contractor proceed on the task order work until an award has been made. The government may accept the proposal as stated or negotiate any aspect of that proposal. The Government shall negotiate with the Contractor all items and any exceptions of the performance period required by the delivery schedule.

1.3.6 Construction TO's using a "Detailed Estimate approach, including specialty subcontract work as described above, will be developed using a Construction Specifications Institute (CSI) format and shall identify quantities and detail units and cost for labor, material and equipment. Supporting documentation that may include items such as competitive subcontractor quotations, vendor quotations, equipment price lists or other substantiation may be required as appropriate and is at the sole discretion of the Government. The TO price will be computed by using the total direct costs established by this. The proposal shall provide a (1) breakdown that shall include sufficient detail to permit an analysis of all costs for --(i) Material; (ii) Labor; (iii) Equipment; (iv) subcontracts; and (2) shall cover all work involved in the TO. The Contractor is required to solicit, as a minimum, three bids/quotes on non-Mean priced work that is to be subcontracted.

1.3.7 The TO shall be of sufficient detail to identify and quantify all line items as noted herein.

1.3.7.1 Task Order proposal format for the work, shall reflect the CSI/ format and shall include:

1.3.7.1.1 Unit Line Items: Provide the Division Number/Title, Line Number, description, crew, productivity, unit **bare costs** (labor, material, equipment, and total). Quantities estimated along with the total **bare costs** for that quantity shall also be provided line item by line item. Any changes to these line items (as allowed by Appendix A) shall be highlighted. No other changes will be allowed. The rationale for these unit price changes shall be addressed in the narrative, which will be numerically "keyed" back to the line item. **Bare costs** will be subtotaled at the division, subdivision, and major line item levels, apply the applicable city cost index, and add taxes to arrive at a combined total cost.

1.3.7.1.2 "Square Foot"- commercial/Industrial/ Institutional Line Items: Provide the Assembly Number, assembly description, common additives, Quantities, Unit of Measure for each assembly, material/installation/total costs per unit. Quantities estimated along with the total assembly costs for that quantity shall also be provided line item by line item. Any changes to these assembly line items (as allowed by Appendix A) shall be highlighted. No other changes will be allowed. The rationale for the assembly cost changes shall be addressed in a narrative, which will be numerically "keyed" back to the line item. Assembly costs will be subtotaled at the division, subdivision, and major line items levels.

1.3.7.1.3 A brief description of the unit line item or system component of the assembly line item should be identified in the estimate format. To the extent practical** unit and total costs for labor, material and equipment should be identified in the estimate. A more detailed description, rationale for use, assumptions and cost backup information required to justify/document this negotiated line item shall be provided in the accompanying narrative. This narrative shall be keyed to the estimate.

1.3.7.1.4 If it is anticipated that "overtime" may be necessary to complete certain task orders. In such cases the unit "**bare labor**" costs for the affected line items may be adjusted for the loss of production efficiency as per the local labor agreements.

1.3.7.2 As all the work will be performed in a large geographical area, City Cost Indexes (CCI) will be utilized to determine applicable pricing. The indexes will be based on the rates applicable to the closest location to the project site. The CCI may be utilized using the weighted average or by individual division. Mixing the two methods is not acceptable. If done by Division, CCI number will be applied to each of the applicable sections as part of the proposals pricing.

All cost data used will be based on the "national average". Regional adjustments and the use of Davis Bacon rates should be considered in the proposed cost. No other adjustment will be made.

1.3.7.3 Highlight line items where "directed" brand name (s) material is used. Identification of specific brand name and explanation addressed in keyed narrative.

1.3.7.4 The proposal will be reviewed for completeness.

1.3.7.5 Once successfully negotiated, task orders will then be awarded by the Contracting Officer. Each task order shall include the following information:

- a) Date of the task order
- b) Contract number and task order number
- c) Commencement and task order performance data
- d) Accounting and appropriation data
- e) Any other pertinent data

1.3.7.6 Design-Build Task Orders :

1.3.7.6.1 A portion of a design-build task order issued under this contract shall include design work that shall be negotiated. The Contractor and the government shall jointly finalize a task order scope of work (i.e. via site visits or project meetings) which will be used to establish sufficient clarity to generate a fixed priced design and construction task order. This is a Task Order Construction Contract and no task orders will be issued for design services only.

1.3.7.6.2 Design costs shall be based on proposed professional man-hours that will be negotiated on each order as a separate element from the construction portion of the task order. Applicable disciplines, associated labor rates, overhead and profit will be applied as set in the base contract.

1.3.7.6.3 The value of the construction effort will be based on work items as discussed in section 1.1 CONSTRUCTION TASK ORDER – GENERAL

1.3.7.6.4 During the design effort, the design will be reviewed at multiple stages of development as defined in the design portion of the task order scope of work. The Contractor must design the project to be within the task order price. Should the designer's efforts, through no fault of government, result in exceeding the fixed price of the task order, the Government reserves the right to have the Contractor, at his own expense, revise (i.e. de-scope) the design to assure the product can be completed within the price of the task order. However, the government shall not direct the Contractor to construct a product for a price (as established under terms of this contract) that will exceed the task order price, without the revisions being further defined and a contract modification being issued.

1.3.7.6.5 For the design effort the Contractor will provide an estimate utilizing the design schedule (reference section 00010) for each design deliverable specified in the task order scope of work. The overhead and profit should be presented in a manner to allow clear understanding of the overhead and profit for the company providing the design/engineering services and the prime Contractors office overhead and profit related to the design phase of the project

1.3.7.6.6 Construction or Design-Build TO's using a "Detailed Estimate approach, including specialty subcontract work as described above, will be developed using a

Construction Specifications Institute (CSI) format and shall identify quantities and detail units and cost for labor, material and equipment. Supporting documentation that may include items such as competitive Subcontractor quotations, vendor quotations, equipment price lists or other substantiation may be required as appropriate and is at the sole discretion of the Government. The TO price will be computed by using the total direct costs established by this method. The proposal shall provide a (1) breakdown that shall include sufficient detail to permit an analysis of all costs for --(i) Material; (ii) Labor; (iii) Equipment; (iv) Subcontracts; and (2) shall cover all work involved in the TO. The Contractor is required to solicit, as a minimum, three bids/quotes on non-Mean priced work that is to be subcontracted.

1.4 UNIT LINE ITEMS:

1.4.1 The total bare costs of unit price line items (as may be modified - see below and Appendix A) establishes the total price (i.e. all direct & indirect costs, and profit) for the priced work.

1.4.2 The prime Contractor's direct costs will be negotiated based on actual labor rates and anticipated material costs, job conditions, expected productivity, etc. If the prime Contractor does not intend to selfperform the work, then the subcontractor's markup shall be incorporated into the direct costs.

1.4.3 BRAND NAME MATERIALS: If the Government directs the use of a specific brand name material and this material is compatible with the industry standard unit price classification, the Contractor may, at his option, use his negotiated material. This cost along with the **bare** labor and equipment cost (as may be modified- see Appendix A) will establish the bare total cost.

1.4.4 The **bare** unit labor/equipment rates are not affected by the Contractor's intent to self-perform and/or subcontract the work.

1.4.5 If the Government directs the use of a specific brand name material the material and labor cost will be negotiated.

1.4.6 At the discretion of the government, additional "**bare cost**" unit line item categories for work may be added to the existing data base for use in subsequent task orders. This line item shall not include "brand name" and/or proprietary equipment. Price will be negotiated using average material costs /productivity data and national average labor rates. These additional line item costs shall not include the prime Contractor's overhead and profit and will be as a unit line item. This price will be good for one year after finalization, and at the discretion of the Government, may be renegotiated yearly. This item shall be within the scope and general intent of the contract.

1.5 EMERGENCY ORDERING PROCEDURES:

1.5.1

On occasions when problems develop during other than normal duty hours and which jeopardize the operation of the Washington Aqueduct, the Contracting Officer or his Representative may contact the contractor to respond to the needs of the Government. With his bid for this contract the Contractor shall submit a proposal which included technical approach, organizational chart complete with the names, titles, phone numbers and cell numbers for this primary contact and two (2) alternate points of contact who all have the authority to initiate the mobilization for emergency work under this contract. The contractor shall submit names of crewmembers with job descriptions, level of experience, and the equipment to be used by each crew during emergency work. Each crew is expected to be a minimum of 2 members and anticipated number of crews is expected 1. The Contractor will respond within two (2) hours following telephonic notification and email backup, which may be made at any time in any twenty-four hour period.

1.5.2 The contractor shall, within four (4) hours (unless the contracting officer determined that additional time is required) following such notification, provide a proposal, for the scope of work provided. The time of commencement and completion shall be as specified by the government.

1.5.3 The proposal will be reviewed for completeness and any items negotiated.

1.5.4 The Contractor will not proceed with the agreed upon negotiated actions until written direction is provided by the Contracting Officer or his authorized representative.

1.5.5 A task order will subsequently be awarded.

1.6 PERFORMANCE OF TASK ORDERS:

1.6.1 Before any of the work under an individual task order will begin, the Contractor shall confer with the Contracting Officer's Representative and agree on a sequence of procedure of access to premises and building; space for storage of materials and equipment; delivery of materials and use of approaches, use of corridors; stairways; elevators; and similar means of communications and the location of partitions, eating spaces, and restrooms for the Contractor's employees.. Furniture and equipment in the immediate area will be moved by the Contractor and replaced to original position.

1.6.2 If approved by the Facility Manager, any temporary use of an existing elevator shall be by arrangement and subject to the control of the Government. Such use will be of an intermittent nature. The Contractor shall provide and maintain suitable and adequate protection covering for the elevator machinery, the hatchway entrance, and the interior of elevator during the period of temporary use. Loads in excess of the rated capability of the elevator will not be permitted. The government will bear the cost of electrical current for the operation of the elevator. On completion of the work, the Contractor shall remove the protective coverings together with any resultant dirt and debris, and leave the equipment in a condition equal to that prior to its initial use by the Contractor.

1.6.3 If the work required by the task order will not allow furniture and portable office equipment to be replaced to its original location, new locations will be designated by the COR for replacement by the Contractor.

1.6.4 Delivery of materials and equipment shall be made with a minimum of interference with the installation staff.

1.7 PROGRESS SCHEDULING AND REPORTING:

The Contractor shall within five days or as otherwise determined by the Contracting Officer, after date of notice to proceed, submit for approval a progress schedule showing the manner in which he intends to prosecute the work. The software used to generate the Project Schedule shall be compatible with the programs used by the Government and maintained throughout the life of the contract. Schedules shall be submitted in Primavera P6 format. Other programs may be acceptable; however they require approval by the Contracting Officer prior to use. Scheduling software must be capable of producing an SDEF format file. The Critical Path Method (CPM) of network calculation shall be used to generate the Project Schedule. The requirements of the TO, shall provide the level of detail required for the Project Schedule. Procurement activities may be indicated on the schedule, and the schedule updated monthly.

1.8 PAYMENTS TO CONTRACTORS:

For payment purposes only, an allowance will be made by the Contracting Officer of 100 percent of the invoiced cost of materials or equipment delivered to the site but not incorporated into the construction, pursuant to the Contract Clause entitled "PAYMENTS UNDER FIXED-PRICE CONSTRUCTION CONTRACTS". The

Contracting Officer may also, at his/her discretion, take into consideration the cost of materials or equipment stored at locations other than the jobsite, when making progress payments under the contract. In order to be eligible for payment, the Contractor must provide satisfactory title evidence that he has acquired title to such material or equipment, and that it will be utilized on the work covered by this contract. Further, all items must be properly stored and protected. Earnings will be computed using 100% of invoiced value.

1.9 PHOTOGRAPHS: (SEP 85 REV JUN 1991)

The Contractor shall furnish digital color photographs of the project to the Contracting Officer. Photographs shall be in the quantities and the intervals required in the Task Order specifications.

1.10 WASHINGTON AQUEDUCT SPECIFIC JOB CONDITIONS:

1.10.1 CONTRACTOR SECURITY ACCESS:

1.10.1.1 The Washington Aqueduct has been designated a Critical Infrastructure Facility under the National Critical Infrastructure Program which was outlined in *Presidential Decision Directive 63*. All Contractor and sub-contractor personnel must consent to a review of public records and screening of personal background information before access is granted to Government property. Failure to provide requested information may result in denial of access to facilities. No information will be released to outside agencies.

1.10.1.2 The following major types of adverse information may exclude a contractor, his employees, or sub-contractors from gaining access to Washington Aqueduct property. Each case will be reviewed on its own merit:

- a) Illegal use or abuse of drugs or alcohol, theft or dishonesty, unreliability, instability, use of force, violence and weapons related incidents that indicate a general disregard for the law.
- b) Aberrant, deviant sexual behavior or bizarre sexual conduct. Contributing to the delinquency of minors, child molestation, and/or rape. Records or testimony of employment, education or military service where the individual was involved in serious offenses or incidents that would reflect adversely on the honesty, integrity, trustworthiness, or stability of the individual.
- c) Excessive indebtedness, bad checks, financial difficulties or irresponsibility.
- d) Failing or refusing to sign the proper authorization documents to conduct the background screenings.
- e) Knowingly providing false information on Official Government Documents.
- f) Contractors must ensure that employees are legal residents of the United States and supply that proof.
- g) Involvement with known terrorists, terrorist organizations, terrorist-supporting financial organizations, subversive organizations or individuals who advocate violence or the violent overthrow of the US Government.

1.10.1.3 The Contractor shall maintain a current list of employees, to include trucking and delivery drivers, and coordinate with the Contracting Officer's Representative (COR) to ensure that the guards are furnished with a current list in order to allow for access to the site for the Contractor's personnel.

1.10.1.4 Vehicle Registration: The Contractor shall ensure that Contractor employees comply with vehicle registration requirements. The Contractor personnel entering Washington Aqueduct property and utilizing Contractor owned or privately owned vehicles on Washington Aqueduct shall possess a valid state driver's license and register vehicles with the Washington Aqueduct Visitor Access Control.

1.10.1.5 "Off Limits" Areas of Facilities: Certain buildings and real property parcels are "off limits" to the general public. The Contractor personnel shall not enter any "off limits" facilities without specific permission from the COR to do so. Other areas where the Contractor is authorized to enter must be locked except when entering or leaving the area. The Contractor shall ensure these areas are locked following entrance, remain locked while working within, and are re-locked upon egress. The Contractor shall provide their own sanitary facility.

1.10.2 ADDITIONAL SECURITY REQUIREMENTS:

1.10.2.1 Access and General Protection/Security Policy and Procedures: All contractor and all associated sub-contractors employees shall comply with applicable installation, facility and area commander installation/facility access and local security policies and procedures (provided by government representative). The contractor shall also provide all information required for background checks to meet installation/facility access requirements to be accomplished by installation Provost Marshal Office, Director of Emergency Services or Security Office. Contractor workforce must comply with all personal identity verification requirements (FAR clause 52.2049, Personal Identity Verification of Contractor Personnel) as directed by DOD, HQDA and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any installation or facility change, the Government may require changes in contractor security matters or processes.

1.10.2.2 Suspicious Activity Reporting Training (e.g. iWATCH, Corps Watch, or See Something, Say Something): The contractor and all associated sub-contractors shall receive a brief/training (provided by the RA) on the local suspicious activity reporting program. This locally developed training will be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity to the project manager, security representative or law enforcement entity. This training shall be completed within 30 calendar days of contract award and within 30 calendar days of new employees commencing performance with the results reported to the COR NLT 5 calendar days after the completion of the training.

1.10.2.3 Escorts in areas where they may be exposed to classified and/or sensitive materials and/or sensitive or restricted areas: All contract employees, including subcontractor employees who are not in possession of the appropriate security clearance or access privileges, will be escorted in areas where they may be exposed to classified and/or sensitive materials and/or sensitive or restricted areas.

1.10.2.4 Pre-screen candidates using E-Verify Program: The Contractor must pre-screen Candidates using the E-verify Program (<http://www.uscis.gov/e-verify>) website to meet the established employment eligibility requirements. The Vendor must ensure that the Candidate has two valid forms of Government issued identification prior to enrollment to ensure the correct information is entered into the E-verify system. An initial list of verified/eligible Candidates must be provided to the COR no later than 3 business days after the initial contract award.

1.11 MILITARY AND NON-MILITARY SPECIFIC JOB CONDITIONS:

1.11.1 CONTRACTOR SECURITY ACCESS:

1.11.1.1 Construction Vehicles shall be registered. Such Vehicles registered as specified below will be allowed to enter gate without being searched or as determined at the discretion of the gate guard.

1.11.1.2 All drivers registered, shall be licensed, and able to furnish two forms of photo identification.

1.11.1.3 Prime Contractor shall register all long-term employees at vehicle registration (location from gate guard).

1.11.1.4 Smaller vehicles such as personally owned vehicles and pickup trucks may enter by the front gate, but will be searched at each entry.

1.11.1.5 Unregistered subcontractors (e.g. short term Contractors) will be searched at each entry.

1.11.1.6 All of Contractor and subcontractors employees working on a Government facility must be American Citizens and be able to provide proof of citizenship with a Certificate of Birth and a valid picture driver's license. There will be no exceptions for this requirement.

1.11.1.7 All Contractor and subcontractor personnel must consent to a review of public records and screening of personal background information before access is granted to Washington Aqueduct. Failure to provide requested information may result in denial of access to facilities. No information will be released to outside agencies.

1.11.1.8 Prime Contractor shall contact the Contracting Officer or COR for additional information or questions on these procedures.

1.12 IDENTIFICATION OF EMPLOYEES:

Each employee assigned to this project by the Contractor and subcontractor shall be required to display at all times, while on the project site, an approved form of identification provided by the Contractor, as an authorized employee of the Contractor/subcontractor. In addition, on those projects where identification is prescribed and furnished by the Government, it shall be displayed as required and it shall immediately be returned to the Contracting Officer Representative for cancellation upon release of the assigned employee and or completion of project.

1.13 LAYOUT OF WORK:

The Contractor shall layout his work and shall be responsible for all measurements in connection therewith. The

Contractor shall furnish, at his own expense, all templates, platforms, equipment, tools and materials and labor as may be required in laying out any part of the work. The Contractor will be held responsible for the execution of the work to such lines and elevations shown on the drawings or indicated by the Contracting Officer.

1.14 UTILITIES:

1.14.1 AVAILABILITY OF UTILITIES INCLUDING LAVATORY FACILITIES:

1.14.1.1 It shall be the responsibility of the Contractor to provide all utilities he may require during the entire life of the contract. He shall make his own investigation and determinations as to the availability and adequacy of utilities for his use for renovation purposes. He shall install and maintain all necessary supply lines, connections, and meters if required, but only at such locations and in such manner as approved by the Contracting Officer. Before final acceptance of work under this contract, all temporary supply lines, connections installed by the Contractor shall be removed by him in a manner satisfactory to the Contracting Officer.

1.14.2 INTERRUPTION OF UTILITIES:

1.14.2.1 No utility services shall be interrupted by the Contractor to make connections, to relocate, or for any purpose without approval of the Contracting Officer. Existing system voltages are 13800 Volts, 4160 Volts, 2400 Volts, and less than 600 Volts,

1.14.2.2 Request for permission to shut down utility services shall be submitted in writing to the Contracting Officer not less than fourteen (14) days prior to proposed date of interruption. The request shall give the following information:

- a) Nature of Utility (Electric, Gas, L.P. or H.P., Water, Etc.);
- b) Size of line and location of shutoff;
- c) Buildings and services affected;
- d) Hours and date of shutoff; and
- e) Estimated length of time service will be interrupted;

1.14.2.3 Services will not be shut off until receipt of approval of the proposed hours and date from the Contracting Officer.

1.14.2.4 Shutoffs which will cause interruption of Government work operations as determined by the Contracting Officer shall be accomplished during regular non- work hours or on nonwork days of the Using Agency without any additional cost to the Government.

1.14.2.5 Operation of valves on water mains will be by Government personnel or as directed in the Government scope of work.

1.14.2.6 Where shut off water lines interrupt service to fire hydrants or fire sprinkler systems, the Contractor shall arrange his operations and have sufficient material and personnel available to complete the work without undue delay or to restore service without delay in event of emergency.

1.14.2.7 Flow in gas mains which have been shut off shall not be restored until the Government inspector has determined that all items serviced by the gas line have been shut off.

1.15 DISPOSAL OF EXISTING MATERIAL AND EQUIPMENT:

All removed, dismantled or demolished material and/or equipment including rubble, scrap and debris not specified or indicated to be Government salvaged, reinstalled under this contract or otherwise retained for disposal on the post will become the property of the Contractor and shall be promptly removed from the site and disposed of by the Contractor at his own expense and responsibility. All removed, dismantled or demolished material and/or equipment including rubble, scrap and debris that is considered to be hazardous e.g. asbestos containing material must be appropriately manifested and disposed of with a copy of the manifest and letter from the accepting landfill furnished to the installation.

1.16 COMPLIANCE WITH POST/BASE REGULATIONS:

All work completed on a military reservation or Government facility must be in compliance with all rules and regulations issued by the Commanding Officer covering general safety, security, radiation, sanitary requirements, pollution control, and traffic regulations and parking, shall be observed by the Contractor. Information regarding these requirements may be obtained by contacting the Contracting Officer Representative, who will provide such information or assist in obtaining same from appropriate authorities.

1.17 MAINTENANCE OF ACCESS:

Unless approved by the Contracting Officer, the Contractor shall not block passage through sidewalks, roads, or other entranceways to buildings during performance of work under this contract.

1.18 PROTECTION OF GOVERNMENT PROPERTY AND PERSONNEL:

1.18.1 Equipment Protection:

All existing non-Contractor owned material and equipment within the work area shall be protected by the Contractor from damage caused by construction operations.

1.18.2 Damaged Facilities:

All existing facilities damaged as a result of the construction activities shall be restored to a condition equivalent to that prior to the start of work. Materials used for replacement, repairing, patching, restoration, and similar type work shall match existing.

1.18.3 Personnel Protection:

The Contractor shall protect personnel by installing barricades as applicable to prevent injury from unauthorized entry into work areas. Warning signs shall be erected as necessary. Work shall proceed in such manner as to prevent the undue spread of dust. The contractor shall be responsible for equipping their crew with the appropriate personal protection gears (PPE) required for the necessary tasks. The Contracting Officer's Representative have the rights to stop any ongoing works if any inadequacies are noticed.

1.18.4 Additional Measures:

The Contractor shall take such additional measures as may be directed by the Contracting Officer to prevent damage or injury to non-Contractor property or personnel.

1.19 SUSPENSION OF OPERATIONS:

Government can direct suspension of operations of any portion of work, which the Contractor upon request does not correct. This suspension of operations may be the result of deficient work, non-compliance with environmental controls, violations of the approved confined space plan or any related safety hazard. Suspension of work will be communicated by letter, signed by the Contracting Officer.

1.20 ASBESTOS HANDLING AND REMOVAL:

Unless stated otherwise in individual task orders, it should be assumed that through site investigations, friable asbestos containing material has not been found, however if asbestos containing material is encountered, its testing, removal and disposal is covered in the "CHANGES" clause of the Contract Clauses and subject to Equitable Adjustment as outlined therein.

1.21 TIME EXTENSIONS FOR UNUSUALLY SEVERE WEATHER:

1.21.1 Procedure for Determination:

1.21.1.1 This provision specifies the procedure for determination of time extensions for unusually severe weather in accordance the contract clause, FAR 52.249-10 entitled "Default: (Fixed Price Construction)". In order for the Contracting Officer to award a time extension under this clause, the following conditions must be satisfied:

- a) The weather experienced at the project site during the contract period must be found to be unusually severe, that is, more severe than the adverse weather anticipated for the project location during any given month.
- b) The unusually severe weather must actually cause a delay to the completion of the project. The delay must be beyond the control and without the fault or negligence of the Contractor.

1.21.2 Anticipated Adverse Weather Delays:

The schedule of monthly anticipated adverse weather delays is based on National Oceanic and Atmospheric Administration (NOAA) or similar data for the project location and will constitute the base line for monthly weather time evaluations. The Contractor's progress schedule must reflect these anticipated adverse weather delays in all-weather dependent activities. Monthly Anticipated Adverse Weather Delays will be specified in the Task Order as appropriate.

1.21.3 Impact:

Upon the award of the contract and continuing throughout the contract, the will record on the daily CQC report, the occurrence of adverse weather and resultant impact to normally scheduled work. Actual adverse weather delay days must prevent work on critical activities for f i f t y (50) percent or more of the Contractor's scheduled work day. The number of actual adverse weather delay days shall include days impacted by actual adverse weather (even if adverse weather occurred in previous month), be calculated chronologically from the first to the last day of each month, and be recorded as full days. If the number of actual adverse weather delay days exceeds the number of days anticipated in paragraph "Anticipated Adverse Weather Delays", above, the Contracting Officer will convert any qualifying delays to calendar days, giving full consideration for equivalent fair weather work days, and issue a modification in accordance with the contract clause, FAR 52.249-10, entitled "Default (Fixed Price Construction)". will record on the daily CQC report, the occurrence of adverse weather and resultant impact to normally scheduled work. Actual adverse weather delay days must prevent work on critical activities for f i f t y (50) percent or more of the Contractor's scheduled work day. The number of actual adverse weather delay days shall include days impacted by actual adverse weather (even if adverse weather occurred in previous month), be calculated chronologically from the first to the last day of each month, and be recorded as full days. If the number of actual adverse weather delay days exceeds the number of days anticipated in paragraph "Anticipated Adverse Weather Delays", above, the Contracting Officer will convert any qualifying delays to calendar days, giving full consideration for equivalent fair weather work days, and issue a modification in accordance with the contract clause, FAR 52.249-10, entitled "Default (Fixed Price Construction)".

1.22 WORKING HOURS:

Work hours shall be determined on a per Task Order basis. It shall be the Contractors responsibility to obtain advance approval (from the Contracting Officer) for working hours other than the normal five (5) day work week from 7:00 am to 3:30 pm.

1.23 SAFETY:

1.23.1 U.S. ARMY CORPS OF ENGINEERS, EM 385-1-1 (30 November 2014) Safety and Health Requirements Manual):

1.23.1.1 The publication listed below form a part of this specification and are referred to in the text by the basic designation only. All interim changes (changes made between publications of new editions) to the U.S. Army Corps of Engineers Safety and Health Requirements Manual, EM 385-1-1, will be posted on the Headquarters Website. The date that it is posted shall become the official effective date of the change and contracts awarded

after this date shall require complying accordingly. The website location where these changes can be found is under the button entitled "Changes to EM", located at:

<http://www.usace.army.mil/SafetyandOccupationalHealth.aspx>

1.23.1.2 GENERAL:

1.23.1.2.1 All work shall be accomplished within full compliance to the US Army Corps of Engineers Safety and Health Requirements Manual, EM 385-1-1 and/or other applicable Federal, State, and Local safety regulations. Where there are two interpretations or conflicts the stricter standard will apply.

1.23.1.2.2 Worker safety is of paramount importance. The Contractor shall comply with the Contract Clause in the Solicitation entitled ACCIDENT PREVENTION (FAR 52.236-13), including the U.S. Army Corps of Engineers Safety and Health Requirements Manual referred to therein in addition to the provisions of this specification.

1.23.2 SAFETY PROGRAM:

1.23.2.1 The U.S. Army Corps of Engineers Safety and Health Requirements Manual, EM 385-1-1, and all subsequent revisions referred to in the Contract Clause ACCIDENT PREVENTION of this contract, are hereby supplemented as follows:

1.23.2.1.1 The Contractor shall designate an employee with the appropriate education, experience and training who is responsible for overall supervision of accident prevention activities. Such duties shall include:

1.23.2.1.1.1 Assuring applicable safety requirements are;

a) Communicated to the workers in a language they understand (reference EM 385-1-1, 15 September 2008, 01.A.04). It is the Contractor's responsibility to ascertain if there are workers on the job who do not speak and/or understand the English language. If such workers are employed by the prime Contractor or subcontractors, at any tier, it is the prime Contractor's responsibility to ensure that all safety programs, signs, and tool box meetings are communicated to the workers in a language they understand, and that a bilingual employee is on site at all times. If the Contractor contends that interpreters and/or bilingual signs are not required, a language certificate must be provided which verifies that all workers (whose native tongue is other than English) have a command of the English language sufficient to understand all direction, training and safety requirements, whether written or oral, and incorporated in work methods, and

b) Inspecting the work to ensure that safety measures and instructions are actually applied. The proposed site safety and health officer's name and qualifications shall be submitted in writing for approval to the Contracting Officer's Representative. This individual must have the appropriate level of prior experience and training as a site safety officer or engineer and be able to demonstrate his/her familiarity and understanding of the safety requirements over a prescribed trial period in accordance with EM 385-1-1 10.A.17. The site safety and health officer shall have the authority to act on behalf of the Contractor's general management to take whatever action is necessary to assure compliance with safety requirements. The safety supervisor is required to be on the site when work is being

performed. The safety supervisor's costs, roles and responsibilities will be negotiated on a task order by task order basis.

1.23.2.1.1.2 Prior to commencement of any work at a job site, a pre-construction safety meeting shall be held between the Contractor and the Corps of Engineers Area/Resident Engineer to discuss the Contractor's safety program and in particular to review the following submittals:

1.23.2.1.1.2.1 Contractor's Accident Prevention Plan: An acceptable accident prevention plan, written by the prime Contractor for the specific work and implementing in detail the pertinent requirements of Appendix A of EM 385-1-1, shall be submitted for Government approval.

1.23.2.1.1.2.2 Activity Hazard Analysis: Prior to beginning each definable feature of work, an activity hazard analysis (AHA) shall be prepared by the Contractor for that feature of work and submitted to the Contracting Officer's Representative for approval. A feature of work is defined as an operation involving a type of work presenting hazards not experienced in previous operations or where a new subcontractor or work crew is to perform work. The analysis shall address the hazards for each activity performed in the phase and shall present the procedures and safeguards necessary to eliminate the hazards or reduce the risk to an acceptable level. The AHA must be developed in accordance with Section 01.A.13 of EM 385-1-1.

1.23.2.1.1.3 Subsequent jobsite safety meetings shall be held as follows:

1.23.2.1.1.3.1 A safety meeting shall be held at least once a month for all supervisors on the project to review past activities, to plan ahead for new or changed operations and to establish safe working procedures to anticipated hazards. An outline report of each monthly meeting shall be submitted to the Contracting Officer's Representative.

1.23.2.1.1.3.2 At least one safety meeting shall be conducted weekly, or whenever new crews begin work, by the appropriate field supervisors or foremen for all workers. An outline report of the meeting giving date, time, attendance, subjects discussed and who conducted it shall be maintained and copies furnished with the daily quality control report.

1.22.3 ACCIDENTS:

1.22.3.1 All reportable and recordable accidents are to be investigated by both the Contractor and, where appropriate, the subcontractor.

1.22.3.2 Accident Reporting, Eng Form 3394:

1.22.3.2.1 Section 1, Paragraph 01.D, of EM 385-1-1 and the Contract Clause entitled ACCIDENT PREVENTION (FAR 52.236-13) are amended as follows: The prime Contractor shall report on Eng Form 3394, supplied by the Contracting Officer, all injuries to his employees or subcontractors that result in treatment by a

medical professional and/or lost time and all damage to property and/or equipment in excess of \$2,000 per incident. Verbal notification of such accident shall be made to the Government Designated Authority immediately. A written report on the above noted form shall be submitted to the Contracting Officer within 24 hours following such accidents. The written report shall include the following:

1.22.3.2.1.1 A description of the circumstances leading up to the accident, the cause of the accident, and corrective measures taken to prevent recurrence.

1.22.3.2.1.2 A description of the injury and name and location of the medical facility giving examination and treatment.

1.22.3.2.1.3 A statement as to whether or not the employee was permitted to return to work after examination and treatment by the doctor, and if not, an estimate or statement of the number of days lost from work. If there have been days lost from work, state whether or not the employee has been re-examined and declared fit to resume work as of the date of the report.

1.22.4 OSHA Requirements:

1.22.4.1 OSHA Form 300 Log: A copy of the Contractor's OSHA 300 Log of Injuries shall be forwarded monthly to the Government Designated Authority.

1.22.4.2 OSHA Inspections: Contractors shall immediately notify the Contracting Officer when an OSHA Compliance official (Federal or State representative) presents his/her credentials and informs the Contractor that the workplace will be inspected for OSHA compliance. Contractors shall also notify the Contracting Officer upon determination that an exit interview will take place upon completion of the OSHA inspection. (NABSA OCT 05, 1976)

1.23 CONTRACTOR QUALITY CONTROL:

1.23.1 GENERAL

1.23.1.1 The Contractor shall provide and maintain an effective quality control program that complies with the Contract Clause entitled "Inspection of Construction." The Contractor's Quality Control Program through inspection and reporting shall demonstrate and document the extent of compliance of all work with the standards and quality established by the contract documents. The burden of proof of contract compliance is placed on the Contractor and not assumed by the Government. The Contractor's Quality Control will not be accepted without question. The Contractor's Quality Control program shall include daily inspections and provide for a daily report of CQC activity.

1.23.2 CONTROL

1.23.2.1 Contractor Quality Control is the means by which the Contractor ensures that the construction, to include that of subcontractors and suppliers, complies with the requirements of the contract. At least three phases of control shall be conducted by the CQC System Manager for each definable feature of work as follows:

1.23.2.1.1 Preparatory Phase

1.23.2.1.1.1 This phase shall be performed prior to beginning work on each definable feature of work; after all required plans/documents/materials are

approved/accepted, and after copies are at the work site. This phase shall include:

1.23.2.1.1.1.1 A review of each paragraph of applicable specifications, reference codes, and standards. A copy of those sections of referenced codes and standards applicable to that portion of the work to be accomplished in the field shall be made available by the Contractor at the preparatory inspection. These copies shall be maintained in the field and available for use by Government personnel until final acceptance of the work.

1.23.2.1.1.1.2 A review of applicable contract drawings, if any.

1.23.2.1.1.1.3 A checklist to assure that all materials and/or equipment have been tested, submitted, and approved.

1.23.2.1.1.1.4 Review of provisions that have been made to provide required control inspection and testing.

1.23.2.1.1.1.5 Examination of the work area to assure that all required preliminary work has been completed and is in compliance with the contract.

1.23.2.1.1.1.6 A physical examination of required materials, equipment, and sample work to assure that they are on hand, conform to approved shop drawings or submitted data, and are properly stored.

1.23.2.1.1.1.7 A review of the appropriate activity hazard analysis to assure safety requirements are met.

1.23.2.1.1.1.8 Discussion of procedures for controlling quality of the work including repetitive deficiencies and, document construction tolerances and workmanship standards for that feature of work.

1.23.2.1.1.1.9 An examination to ensure that the portion of the plan for the work to be performed has been accepted by the Contracting Officer.

1.23.2.1.1.1.10 The Government shall be notified at least twentyfour (24) hours in advance of beginning the preparatory control phase. This phase shall include a meeting conducted by the CQC System Manager and attended by the superintendent, other CQC personnel (as applicable), and the foreman responsible for the definable feature. The results of the preparatory phase actions shall be documented by separate minutes prepared by the CQC System Manager and attached to the daily CQC report. The Contractor shall instruct applicable workers as to the acceptable level of workmanship required in order to meet contract specifications.

1.23.2.2 Initial Phase

1.23.2.2.1 This phase shall be accomplished at the beginning of a definable feature of work. The following shall be accomplished:

1.23.2.2.1.1 An examination of work to ensure that it is in full compliance with contract requirements. Review minutes of the preparatory meeting.

1.23.2.2.1.2 Verify adequacy of controls to ensure full contract compliance. Verify required control inspection and testing.

1.23.2.2.1.3 Establish level of workmanship and verify that it meets minimum acceptable workmanship standards. Compare with required sample panels as appropriate.

1.23.2.2.1.4 Resolve all differences.

1.23.2.2.1.5 Examine safety to include compliance with and upgrading of the safety plan and activity hazard analysis. Review the activity hazard analysis with each worker.

1.23.2.2.1.6 The Government shall be notified at least twenty-four (24) hours in advance of beginning the initial phase. Separate minutes of this phase shall be prepared by the CQC System Manager and attached to the daily CQC report. Exact location of initial phase shall be indicated for future reference and comparison with follow-up phases.

1.23.2.2.1.7 The initial phase should be repeated for each new crew to work onsite, or any time acceptable specified quality standards are not being met.

1.23.2.3 Follow-Up Phase

Daily checks shall be performed to assure control activities, including control testing, are providing continued compliance with contract requirements, until completion of the particular feature of work. The checks shall be made a matter of record in the CQC documentation. Final follow-up checks shall be conducted and all deficiencies corrected prior to the start of additional features of work which may be affected by the deficient work. The Contractor shall not build upon nor conceal non-conforming work.

1.23.2.4 Additional Preparatory and Initial Phases

Additional preparatory and initial phases shall be conducted on the same definable features of work if: the quality or safety of on-going work is unacceptable; if there are changes in the applicable CQC staff, onsite production supervision or work crew; if work on a definable feature is resumed after a substantial period of inactivity; or if other problems develop.

1.23.3 CONTRACTOR QUALITY CONTROL PLAN:

1.23.3.1 Not later than fourteen (14) days after the Task Order is awarded, the Contractor shall submit to the Contracting Officer for approval a Contractor Quality Control (CQC) Plan showing proposed implementation of the requirements of the Contract Clause titled "Inspection of Construction." The plan shall identify personnel, procedures, control, instructions, test, records, and forms to be used. Construction will be permitted to begin only after acceptance of the CQC Plan.

1.23.4 CQC System Manager

1.23.4.1 The Contractor shall identify as CQC System Manager an individual within the onsite work organization who shall be responsible for overall management of CQC and have the authority to act in all CQC matters for the Contractor. The CQC System Manager shall be a construction person with a minimum of ten (10) years in related work. The CQC System Manager shall have completed the course entitled "Construction Quality Management for Contractors" within forty-five (45) calendar days after contract award. Costs associated with this course shall be borne by the Contractor. Further information on the course is available from the Contracting Officer and will be provided upon request. The CQC System Manager shall be on the site at all times during construction and shall be employed by the prime Contractor. The CQC System Manager may be assigned other duties in addition to CQC System Manager responsibilities. An alternate for the CQC System Manager shall be identified in the plan to serve in the event of the System Manager's absence. The requirements for the alternate shall be the same as for the designated CQC System Manager.

1.23.4.2 ADDITIONAL REQUIREMENTS FOR CONSTRUCTION MANAGEMENT

1.23.5 Documentation

1.23.5.1 The Contractor shall maintain current records providing factual evidence that required quality control activities and/or tests have been performed. These records shall include the work of subcontractors and suppliers and shall be on an acceptable form that includes, as a minimum, the following information:

- 1.23.5.1.1** Contractor/subcontractor and their area of responsibility.
- 1.23.5.1.2** Operating plant/equipment with hours worked, idle, or down for repair.
- 1.23.5.1.3** Work performed each day, giving location, description, and by whom.

1.23.5.1.4 Test and/or control activities performed with results and references to specifications/drawings requirements. The control phase shall be identified reparatory, initial, and follow-up. List deficiencies noted along with corrective action.

1.23.5.1.5 Quantity of materials received at the site with statement as to acceptability, storage, and reference to specifications/drawings requirements.

1.23.5.1.6 Submittals and deliverables reviewed, with contract reference, by whom, and action taken.

1.23.5.1.7 Off-site surveillance activities, including actions taken.

1.23.5.1.8 Job safety evaluations stating what was checked, results, and instructions for corrective actions.

1.23.5.1.9 Instructions given/received and conflicts in plans and/or specifications.

1.23.5.1.10 Contractor's verification statement. These records shall indicate a description of trades working on the project; the number of personnel working; weather conditions encountered; and any delays encountered. These records shall cover both conforming and deficient features and shall include a statement that equipment and materials incorporated in the work and workmanship comply with the contract. The original and one copy of these records in report form shall be

furnished to the Government daily within twenty-four (24) hours after the date covered by the report, except that reports need not be submitted for days on which no work is performed. As a minimum, one report shall be prepared and submitted for every seven (7) days of no work and on the last day of a no work period. All calendar days shall be accounted for throughout the life of the contract. The first report following a day of no work shall be for that day only. Reports shall be signed and dated by the CQC System Manager. The report from the CQC System Manager shall include copies of test reports and copies of reports prepared by all subordinate quality control personnel.

1.23.6 WORK DEFICIENCIES

1.23.6.1 The Contractor shall not build upon or conceal non-conforming work. If deficiencies indicate that the Contractor's Quality Control or safety is not adequate or does not produce the desired results, corrective actions shall be taken by the Contractor. If the Contractor does not promptly make the necessary corrections, the Contracting Officer may issue an order stopping all or any part of the work until satisfactory corrective action has been taken. No payment will be provided for deficient work. Payment can only be made when Government acceptance of the invoiced work is provided. If recurring deficiencies in an item or items indicated that the quality control is not adequate, such corrective actions shall be taken as directed by the Contracting Officer.

1.24 QUALITY CONTROL SYSTEM (QCS):

1.24.1 GENERAL

1.24.1.1 The Government will use the Resident Management System for Windows (RMS) to assist in its monitoring and administration of this contract. The Contractor shall use the Government- furnished Construction Contractor Module of RMS, referred to as QCS, to record, maintain, and submit various information throughout the contract period. The Contractor module, user manuals, updates, and training information can be downloaded from the RMS web site. This joint Government-Contractor use of RMS and QCS will facilitate electronic exchange of information and overall management of the contract. QCS provides the means for the Contractor to input, track, and electronically share information with the Government in the following areas:

- Administration
- Finances
- Quality Control
- Safety
- Submittal Monitoring Scheduling
- Import/Export of Data

1.24.1.2 Correspondence and Electronic Communications

For ease and speed of communications, both Government and Contractor will, to the maximum extent feasible, exchange correspondence and other documents in electronic format. Correspondence, pay requests and other documents comprising the official contract record shall also be provided in paper format, with signatures and dates where necessary. Paper documents will govern, in the event of discrepancy with the electronic version.

1.24.2 QCS SOFTWARE

QCS is a Windows-based program that can be run on a stand-alone personal computer or on a network. The Government will make available the QCS software to the Contractor after award of the construction contract. Prior to the Pre-Construction Conference, the Contractor shall be responsible to

download, install and use the latest version of the QCS software from the Government's RMS Internet Website (<http://winrms.usace.army.mil>). Any program updates of QCS will be made available to the Contractor via the Government RMS Website as they become available.

1.24.3 SYSTEM REQUIREMENTS

The following listed hardware and software is the minimum system configuration that the Contractor shall have to run QCS:

Hardware

System meeting the requirements necessary to run QCS, Micro-station, AutoCAD, etc.

Software

Microsoft Office, 2007 or newer, Internet access, Electronic mail (E-mail), MAPI compatible, Virus protection software that is regularly upgraded with all issued manufacturer's updates.

1.24.4 RELATED INFORMATION:

Contractor Quality Control (CQC) Training: The use of QCS will be discussed with the Contractor's QC System Manager during the mandatory CQC Training class.

1.24.5 CONTRACT DATABASE

Prior to the pre-construction conference, the Government shall provide the Contractor with basic contract award data to use for QCS. The Government will provide data updates to the Contractor as needed, generally by files attached to E-mail. These updates will generally consist of submittal reviews, correspondence status, QA comments, and other administrative and QA data.

1.24.6 DATABASE MAINTENANCE

The Contractor shall establish, maintain, and update data for the contract in the QCS database throughout the duration of the contract. The Contractor shall establish and maintain the QCS database at the Contractor's site office. Data updates to the Government shall be submitted by E-mail with file attachments, e.g., daily reports, schedule updates, payment requests. If permitted by the Contracting Officer, a data compact disk (CD) may be used instead of E-mail (see Paragraph DATA SUBMISSION

VIA COMPACT DISK (CD). The QCS database typically shall include current data on the following items:

- Administration
- Contractor Information

The database shall contain the Contractor's name, address, telephone numbers, management staff, and other required items. Within fourteen (14) calendar days of receipt of QCS software from the Government, the Contractor shall deliver Contractor administrative data in electronic format via E-mail.

- Subcontractor Information

The database shall contain the name, trade, address, phone numbers, and other required information for all subcontractors. A subcontractor must be listed separately for each trade to be performed. Each subcontractor/trade shall be assigned

a unique Responsibility Code, provided in QCS. Within f o u r t e e n (14) calendar days of receipt of QCS software from the Government, the Contractor shall deliver subcontractor administrative data in electronic format via E-mail.

- Correspondence

All Contractor correspondence to the Government shall be identified with a serial number. Correspondence initiated by the Contractor's site office shall be prefixed with "S". Letters initiated by the Contractor's home (main) office shall be prefixed with "H". Letters shall be numbered starting from 0001. (e.g., H-0001 or S-0001). The Government's letters to the Contractor will be prefixed with "C".

- Equipment

The Contractor's QCS database shall contain a current list of equipment planned for use or being used on the jobsite, including the most recent and planned equipment inspection dates.

- Management Reporting

QCS includes a number of reports that Contractor management can use to track the status of the project. The value of these reports is reflective of the quality of the data input, and is maintained in the various sections of QCS. Among these reports are: Progress Payment Request worksheet, QA/QC comments, Submittal Register Status, Three-Phase Inspection checklists.

- Finances

- Pay Activity Data

The QCS database shall include a list of pay activities that the Contractor shall develop in conjunction with the construction schedule. The sum of all pay activities shall be equal to the total contract amount, including modifications. Pay activities shall be grouped by Contract Line Item Number (CLIN), and the sum of the activities shall equal the amount of each CLIN. The total of all CLINs equals the Contract Amount.

- Payment Requests

All progress payment requests shall be prepared using QCS. The Contractor shall complete the payment request worksheet and include it with the payment request. The work completed under the contract, measured as percent or as specific quantities, shall be updated at least monthly. After the update, the Contractor shall generate a payment request report using QCS. The Contractor shall submit the payment requests with supporting data by E-mail with file attachment(s). If permitted by the Contracting Officer, a data diskette may be used instead of E-mail. A signed paper copy of the approved payment request is also required, which shall govern in the event of discrepancy with the electronic version.

- Quality Control (QC)

QCS provides a means to track implementation of the 3-phase QC Control System, prepare daily reports, identify and track deficiencies, document progress of work, and support other Contractor QC requirements. The Contractor shall maintain this data on a daily basis. Entered data will automatically output to the QCS generated daily report. The Contractor shall provide the Government a Contract level Contractor Quality Control (CQC) Plan within

20 days of NTP of the first task order. Project specific CQC plans must be provided under individual task orders to include personnel qualification, authorities granted, and any variations to the contract level CQC plan for that project. Within seven calendar days of Government acceptance, the Contractor shall submit a compact disk (CD) reflecting the information contained in the accepted

CQC Plan: schedule, pay activities, features of work, submittal register, QC requirements, and equipment list.

- Daily Contractor Quality Control (CQC) Reports.

QCS includes the means to produce the Daily CQC Report. The Contractor may use other formats to record basic QC data. However, the Daily CQC Report generated by QCS shall be the Contractor's official report. Data from any supplemental reports by the Contractor shall be summarized and consolidated onto the QCS-generated Daily CQC

Report. Reports shall be submitted electronically to the Government using E-mail or compact disc within t w e n t y - f o u r (24) hours after the date covered by the report. Use of either mode of submittal shall be coordinated with the Government representative. The Contractor shall also provide the Government a signed, printed copy of the daily CQC report.

- Deficiency Tracking.

The Contractor shall use QCS to track deficiencies. Deficiencies identified by the Contractor will be numerically tracked using QC punch list items. The Contractor shall maintain a current log of its QC punch list items in the QCS database. The Government will log the deficiencies it has identified using its QA punch list items. The Government's QA punch list items will be included in its export file to the Contractor.

The Contractor shall regularly update the correction status of both QC and QA punch list items.

- Three-Phase Control Meetings

The Contractor shall maintain scheduled and actual dates and times of preparatory and initial control meetings in QCS.

- Accident/Safety Tracking.

The Government will issue safety comments, directions, or guidance whenever safety deficiencies are observed by the Government. The Government's safety comments will be included in its export file to the Contractor. The Contractor shall regularly update the correction status of the safety comments. In addition, the Contractor shall utilize QCS to advise the Government of any accidents occurring on the jobsite. This brief supplemental entry is not to be considered as a substitute for completion of mandatory investigations or submittal of report forms, e.g., ENG Form 3394 and OSHA Form 300 log. The contractor shall use QCS or other acceptable means, acceptable to the Contracting Officer, to report the onsite Exposure Hours (work hours). This report shall be submitted by the 10th of the month for the previous month.

- Features of Work

The Contractor shall include a complete list of the design and construction features of work in the QCS database. A feature of work may be associated with multiple pay activities. However, each pay activity (see subparagraph "Pay Activity Data" of paragraph "Finances") will only be linked to a single feature of work.

- QC Requirements

The Contractor shall develop and maintain a complete list of QC testing, transferred and installed property, and user training requirements in QCS. The Contractor shall update all data on these QC requirements as work progresses, and shall promptly provide this information to the Government via QCS.

- Submittal Management

The Government will provide the initial submittal register, for Government-prepared specifications in electronic format.

- Import/Export of Data

QCS includes the ability to export Contractor data to the Government and to import submittal register and other Government-provided data, and schedule data using SDEF.

1.24.7 IMPLEMENTATION

Contractor use of QCS as described in the preceding paragraphs is mandatory. The Contractor shall ensure that sufficient resources are available to maintain its QCS database, and to provide the Government with regular database updates. QCS shall be an integral part of the Contractor's management of quality control.

1.24.8 DATA SUBMISSION VIA COMPACT DISK (CD)

The Government-preferred method for Contractor's submission of updates, payment requests, correspondence and other data is by E-mail with file attachment(s). For locations where this is not feasible, the Contracting Officer may permit use of compact disks (CD) for data transfer. Data on the CDs shall be exported using the QCS built-in export function. If used, CDs will be submitted in accordance with the following:

- File Medium

The Contractor shall submit required data on compact disks (CD), capable of running under Microsoft Windows 2007 or newer. They shall conform to industry standards used in the United States. All data shall be provided in English.

- Compact Disk (CD) Labels

The Contractor shall affix a permanent exterior label to each CD submitted. The label shall indicate in English, the QCS file name, full contract number, contract name, project location, data date, name and telephone number of person responsible for the data.

- File Names

The Government will provide the file names to be used by the Contractor with the QCS software.

1.24.9 MONTHLY COORDINATION MEETING

The Contractor shall update the QCS database each workday. At least monthly, the Contractor shall generate and submit an export file to the Government with schedule update and progress payment request. As required in Contract Clause "Payments", at least one week prior to submittal, the Contractor shall meet with the Government representative to review the planned progress payment data submission for errors and omissions. The Contractor shall make all required corrections prior to Government acceptance of the export file and progress payment request. Payment requests

accompanied by incomplete or incorrect data submittals will be returned. The Government will not process progress payments until an acceptable QCS export file is received.

1.24.10 NOTIFICATION OF NONCOMPLIANCE

The Contracting Officer will notify the Contractor of any detected noncompliance with the requirements of this specification. The Contractor shall take immediate corrective action after receipt of such notice. Such notice, when delivered to the Contractor at the work site, shall be deemed sufficient for the purpose of notification.

1.25 SUBMITTALS:

1.25.1 REQUIRED SUBMITTALS:

As required per Task Order, Government approval is required for submittals with a "G" designation; all other submittals are for information only. The following shall be submitted in accordance with this Part and in compliance with as will be specified under each Task Order:

SD-01 Data

Field Office/Storage Plan; G AR

Plan describing location and layout of Contractors temporary facilities, including narrative and drawings.

Site Safety and Health Officer

A Site Safety and Health Officer shall be responsible for overall supervision of accident prevention activities.

Accident Prevention Plan; G AR

Plan addressing the programs and site-specific procedures for the prevention of accidents for each activity performed in each phase of work written in accordance with Appendix A of EM 385-1-1.

Activity Hazard Analysis Plan, G AR

Addressing of potential hazards and ways to mitigate them for each definable feature of work.

OSHA 300 Log and Exposure Hours

A log shall be reported monthly for injuries and exposure hours.

Contractor Quality Control (CQC) Plan; G AR

Identifies personnel, procedures, control, instructions, test, records, and forms to be used.

Compact Disk (CD); G AR.

Software containing submittal data in electronic format.

SD-03 Product

Equipment Data

An itemized list of serial/model numbers and equipment installed by the Contractor under this contract.

SD-O7 Schedules

Progress Schedule; G AR.

A schedule that shows the manner in which the Contractor intends to prosecute the work.

Submittal Register; G AR.

A document defining minimum submittals to be furnished to the Contracting Officer ENG FORM 4288.

Traffic Control Plan; G AR

Plan indicating street closings, detours, signs, barricades or other devices necessary for completion of the work.

Risk Assessment; G AR

Risk Assessment submitted by the Contractor and signed by the Corps of Engineer's Area Engineer before excavating.

SD-09 ReportsOutline Report; G AR.

A report for each past activities review.

SD-10 Operation and Maintenance DataO and M Data

A list of proposed maintenance and instruction manuals that is mainly used for but not limited customized equipment.

SD-18 RecordsTitle Evidence

Proof of purchase for equipment and/or materials.

Photographs

Photographic Record of construction progress (as required by Task Order).

Warranty; G AR

Manufacturer warranty documents complete and signed for specific items, extended warranty if requested in the Scope of Work. And, Contractors warranty for all work completed from date of Beneficial Occupancy Date (BOD).

1.25.2 SUBMITTAL

CLASSIFICATION: Submittals are classified as follows:

1.25.2.1 Government Approval

Governmental approval is required for extensions of design, critical materials, deviations, equipment whose compatibility with the entire system must be checked, and other items as designated by the Contracting Officer. Within the terms of the Contract Clause, FAR 52.236-21, entitled "Specification and Drawings for Construction," they are considered to be "shop drawings." AR represents the level of review as being at the Area Office Level. Items without the AR designation must be submitted to District Office personnel for review.

1.25.2.2 Information Only

All submittals not requiring Government approval will be for information only. They are not considered to be "shop drawings" within the terms of the Contract Clause referenced above.

1.25.3 APPROVED SUBMITTALS:

The approval of submittals by the Contracting Officer shall not be construed as a complete check, but will indicate only that the general method of construction, materials, detailed and other information are satisfactory. Approval will not relieve the Contractor of the responsibility for any error that may exist, as the Contractor under the CQC requirements of this contract, is responsible for the dimensions and design of adequate connections, details, satisfactory construction and safety of all work and personnel. After submittals have been approved by the Contracting Officer, no re-submittal for the purpose of substituting materials or equipment will be given consideration unless accompanied by an explanation as to why a substitution is necessary.

1.25.4 DISAPPROVED SUBMITTALS

The Contractor shall make all corrections required by the Contracting Officer and promptly furnish a corrected submittal in the form and number of copies as specified for the initial submittal. If the Contractor considers any correction indicated on the submittals to constitute a change to the contract, notice as required under Contract Clause entitled "Changes" shall be given promptly to the Contracting Officer.

1.25.5 SUBMITTALS GENERAL

The Contractor shall submit all items listed on the Submittal Register or specified in the other sections of these specifications. The Contracting Officer may request submittals in addition to those listed when deemed necessary to adequately describe the work covered in the respective sections. Submittals shall be made in the respective number of copies and submitted to the Contracting Officer. Each submittal shall be complete and in sufficient detail to allow ready determination of compliance with contract requirements. Prior to submittal, all items shall be checked and approved by the Contractor and each respective transmittal form (ENG Form 4025) shall be stamped, signed and dated by the Contractor certifying that the accompanying submittal complies with the contract requirements. Proposed deviations from the contract requirements shall be clearly identified. Submittals requiring Government approval shall be scheduled and made prior to the acquisition of the material or equipment covered thereby.

1.25.6. SUBMITTAL REGISTER

Section 1.25.1 lists items of equipment and materials for which submittals are required by the specifications; this list may not be all inclusive and additional submittals may be required. Columns "d" through "r" (abbreviations in column "p" are defined as follows: "AR" means Area Office; and "ED" means Engineering Division, WA means Washington Aqueduct) have been completed by the Government. The Contractor shall complete columns "a", "b", "c" and "s" through "aa" and return two (2) completed copies (hard copy plus associated electronic file) to the Contracting Officer's Representative for approval within thirty (30) calendar days after Notice to Proceed. The Contractor shall keep this data up to date and shall submit it to the Government together with the monthly payment request. The approved submittal register will become the scheduling document and will be used to control submittals throughout the life of the contract. This register and the progress schedules shall be coordinated.

1.25.7. SCHEDULING

Submittals covering component items forming a system or items that are interrelated shall be scheduled to be coordinated and submitted concurrently. Certifications to be submitted with the pertinent drawings shall be so scheduled. Adequate time (a minimum of thirty (30) calendar days exclusive of mailing time) shall be allowed on the register for review and approval. No delays, damages or time extensions will be allowed for time lost in late submittals.

1.25.8 SUBMITTAL PROCEDURES

1.25.8.1. Six (6) copies of submittals shall be made as follows:

1.25.8.2 Procedures

In the signature block provided on ENG Form 4025 the Contractor certifies that each item has been reviewed in detail and is correct and is in strict conformance with the contract drawings and specifications unless noted otherwise. The accuracy and completeness of submittals is the responsibility of the Contractor. Any costs due to re-submittal of documents caused by inaccuracy, lack of coordination, and/or checking shall be the responsibility of the Contractor. This shall include the handling and review time on the part of the Government. Each variation from the contract specifications and drawings shall be noted on the form; and, attached to the form; the Contractor shall set forth, in writing, the reason for and description of such variations. If these requirements are not met, the submittal may be returned for corrective action.

1.25.8.3 Additional Requirements

The above is in addition to the requirements set forth in Contract Clause entitled "Specifications and Drawings for Construction". (ER 415-1-10)

1.25.8.4. Deviations

For submittals which include proposed deviations requested by the Contractor, the column "variations" of ENG Form 4025 shall be checked. The Contractor shall set forth in writing the reason for any deviations and annotate such deviations on the submittal. The government reserves the right to rescind inadvertent approval of submittals containing unnoted deviations.

1.25.9. GOVERNMENT APPROVED SUBMITTALS

Upon completion of review of submittals requiring Government approval, the submittals will be identified as having received approval by being stamped and dated. Four (4) copies of the submittal will be retained by the Contracting Officer and two (2) copies of the submittal will be returned to the Contractor.

1.25.10 INFORMATION ONLY SUBMITTALS

Normally submittals for information only will be returned. Approval of the Contracting Officer is not required on information only submittals. These submittals will be used for information purposes. The government reserves the right to require the Contractor to resubmit any item found not to comply with the contract.

1.25.11 STAMPS

1.25.11.1 Stamps used by the Contractor on the submittal data to certify that the submittal meets contract requirements shall be similar to the following:

(Firm Name)

_____Approved

_____Approved with corrections as noted on submittal data and/or attached sheet(s).

SIGNATURE: _____

TITLE: _____

1.26 ENVIRONMENTAL PROTECTION:

1.26.1 APPLICABLE REGULATIONS

1.26.1.1 The Contractor and his subcontractors in the performance of this contract, shall comply with all applicable Federal, State, and local laws and regulations concerning environmental pollution control and abatement in effect on the date of this solicitation, as well as the specific requirements stated elsewhere in the contract specifications.

1.26.1.2 Trucks leaving the site with loose debris shall be loaded in a manner that will prevent dropping of materials on the streets. Fasten suitable tarpaulins over the load before they enter surrounding streets. Comply with all regulations when handling hazardous materials.

1.26.2 NOTIFICATION

The Contracting Officer will notify the Contractor of any non-compliance with the foregoing provisions and the action to be taken. The Contractor shall, after receipt of such notice, immediately take corrective action. If the Contractor fails or refuses to comply promptly, the Contracting Officer may issue an order stopping all or part of the work until satisfactory corrective action has been taken. No part of time lost due to any such stop order shall be made the subject of a claim for extension of time or for excess costs or damages by the Contractor unless it is later determined that the Contractor was in compliance.

1.26.3 PROTECTION OF WATER RESOURCES

The Contractor shall not pollute streams, lakes or reservoirs with fuels, oils, bitumens, calcium chloride, acid construction wastes or other harmful materials. It is the responsibility of the Contractor to investigate and comply with all applicable Federal, State, County and Municipal laws concerning pollution of rivers and streams. All work under this contract shall be performed in such a manner that objectionable conditions will not be created in streams through or adjacent to the project areas.

1.26.4 BURNING

Burning will not be permitted

1.26.5 DUST CONTROL

The Contractor shall maintain all work area free from dust which would contribute to air pollution.

Approved temporary methods of stabilization methods will be permitted to control dust. Dust control shall be performed as the work proceeds and whenever a dust nuisance or hazard occurs.

1.26.6 ENVIROMENTAL CONTROL REQUIREMENTS:

The Contractor is responsible to comply with Erosion and Sediment Control provisions detailed on the contract drawings and all requirements of the State in which the work is performed including obtaining the required permits.

1.27 TEMPORARY CONSTRUCTION ITEMS:

1.27.1 GENERAL

The work covered by this section consists of furnishing all labor, materials, equipment, and services and performing all work required for or incidental to the items herein specified. No separate payment will be made for the construction and services required by this section, and all costs in connection therewith shall be included in the overall cost of the work unless specifically stated otherwise.

1.27.2 EMPLOYEE PARKING

Contractor employees shall park privately owned vehicles in areas designated by the Contracting Officer.

Contractor employee parking shall not interfere with existing and established parking requirements of the military installation.

1.27.3 CONTRACTOR'S STORORAGE AREAS AND FIELD OFFICE

1.27.3.1 Administrative Field Offices

The Contractor shall provide and maintain field office facilities as directed by the Contracting Officer. Contractor shall furnish to the Contracting Officer for approval a plan, including both drawings and narrative, showing the proposed layout of the field office, and all storage areas. The plan shall be approved before field office or storage areas are constructed. Government facilities will not be available to the Contractors personnel.

1.27.3.2 Storage Area

The Contracting Officer will designate an outdoor materials/equipment storage location. Contractor shall furnish to the Contracting Officer for approval a plan, including both drawings and narrative, showing the proposed layout of all storage areas. The plan shall be approved before field office or storage areas are constructed. Security for each area shall be sufficient to safeguard materials and equipment. The Government is not responsible for stolen or damaged materials or equipment.

1.27.4 STREET CLOSINGS

1.27.4.1 When operations in connection with contract work necessitate the closing of streets, it shall be the Contractor's responsibility to arrange in advance with the Contracting Officer for such street closings and to provide appropriate barricades, signs, markers, flares and other devices as may be required by the Contracting Officer's Representative for Traffic guides and public safety.

1.27.4.2 A minimum of seventeen (17) days prior to an anticipated street closing for work on or near the work site, the Contractor shall provide a Traffic Control Plan indicating signage,

barricades, flagmen, method(s) to be used for maintaining traffic, etc. to the Contracting Officer for approval.

1.27.5 ORDER OF WORK AND COORDINATION WITH OTHER CONTRACTORS:

Other Contractors may be working the same area. Construction area will be shared from time to time with other Contractors and other project construction activities.

1.27.6 PROJECT AND SAFETY SIGN:

A Project and Safety sign shall be provided, as required per Task Order, and erected at a location designated by the Contracting Officer. The sign shall conform to the applicable requirements of EP 310-1- 6A and EP 310-1-6B, or as directed by the Contracting Officer. The sign shall be erected as soon as possible and within 15 days of the notice to proceed. Upon completion of the project, the sign shall be removed and disposed of by the Contractor.

1.28 REAL PROPERTY EQUIPMENT DATA: (APR 1975)

At or before the time of completion of the contract, the Contractor shall submit to the Contracting Officer a complete itemized list, including serial and model number where applicable, showing the unit retail value of each Contractor furnished item of mechanical, electrical and plumbing equipment installed by the Contractor under this contract. For each of the items which is specified herein to be guaranteed for a specified period from the date of acceptance thereof, either for beneficial use or final acceptance, whichever is earlier, against defective materials, design, and workmanship, the following information shall be given: the name, address and telephone number of the subcontractor, Equipment Supplier, or Manufacturer originating the guaranteed item. The list shall be accompanied by a copy of the specific guarantee if one had been furnished to the Contractor by the Equipment Supplier or Manufacturer. The Contractor's guarantee to the Government of these items will not be limited by the terms of any manufacturer's guarantee to the Contractor. Baltimore District NADB Form 1019 may be utilized for the itemized listing and will be made available to the Contractor upon request.

1.29 TOILET FACILITIES

The Contractor will be required to provide and maintain temporary toilet facilities for Contractor's personnel at no expense to the Government.

1.30 O and M DATA: (JUL 1979)

The requirements for furnishing operating and maintenance data and field instruction are specified elsewhere in the specification. The Contractor shall submit to the Contracting Officer, at a time prior to the 50% project completion time, a list of proposed maintenance and instruction manuals to be furnished to the Government and the scheduled dates of all required field instructions to be provided by Contractor furnished personnel or manufacturer's representative. All maintenance and instruction manuals must be furnished to the Contracting Officer at least two (2) weeks prior to the scheduled dates of any required Contractor furnished field instructions or at least one month prior to project completion if no Contractor furnished field instructions are required.

1.31 RECORD DRAWINGS:

1.31.1 During the progress of the job, the Contractor shall keep a careful record at job site of all changes and corrections for the layouts shown on the drawings, if applicable. The Contractor shall enter such changes and corrections on contact or record drawings promptly. The record drawing shall indicate, in addition to all changes and corrections, the actual location of all sub-surface utility items.

1.31.2 In order that the location of these lines and appurtenances may be determined in the event the surface openings or indicators become covered over or obscured, the record drawings shall show, by offset dimensions to two permanently fixed surface features, the end of each run including change in

direction. Valve, splice boxes and similar appurtenances shall be located by dimensioning along the utility run from a referenced point. The average depth below the surface of each run shall be recorded.

1.31.3 At the time of beneficial occupancy of each structure or facility involved under the contract, the Contractor shall submit to the Contracting Officer as-built prints and electronic files showing the aforementioned data. If the Contractor fails to maintain the record drawings as required herein, the Contracting Officer will consider that satisfactory progress has not been achieved for the period in question, thereby requiring the retainage of 10% of any progress payments to be made until such drawings are made current. Additionally, the estimate cost of maintaining the record drawing will be deducted from any such progress payment. If the Government provides initial drawings on paper, then paper as-builts may be submitted. If the Government provides initial drawings on CADD, then the as-builts shall be provided in the CADD format that is compatible with the installation.

1.32 HOT-WORK PERMIT:

A hot-work permit must be obtained before using heat-producing equipment. A Fire Department Pre-Construction Conference hot work permit form will be provided to the Contractor at the Project Pre-Construction Conference, which also includes a requirement to provide a signature acknowledging receipt of briefing.

1.33 WARRANTY OF CONSTRUCTION:

The Contractor shall warranty all materials and workmanship in accordance with Contract Clause (FAR 52.246-21), "WARRANTY OF CONSTRUCTION".

1.34 MANUFACTURER'S WARRANTY:

The Contractor shall provide manufacturer's warranties, when available, on all equipment for one year starting from the day of facility acceptance by the Government. Any warranty offered by the manufacturer for periods greater than one year or required by other sections of the specifications shall also be provided.

Section 00 21 00 - Instructions

PROPOSAL SUBMISSION**1. PROPOSAL SUBMISSION REQUIREMENTS**

a. Each volume shall be submitted electronically through the solicitation module of the Procurement Integrated Enterprise Environment (PIEE) at <https://piee.eb.mil/>. It is the responsibility of the Offeror to confirm their proposal was received with the assigned contract specialist. Any portion of the proposal that is changed (as a result of negotiations or proposal revisions) should be annotated and dated. Each volume shall be clearly labeled with its Title and a copy number (e.g., copy 1 of 5).

b. Each paragraph should be single spaced and shall be separated by at least one blank line. A standard, 10-point minimum font size applies. Arial or Times New Roman fonts are required. Tables and illustrations may use a reduced font size no less than 8-point and may be produced in landscape mode.

c. The following volumes of material shall be submitted:

Volume	Title
I	Past Performance
I	Management Approach
I	Technical Approach-Sample Project
II	Price

2. PROPOSAL FILES

a. Format. The submission shall be clearly indexed and logically assembled. Each volume shall be clearly identified and shall begin at the top of a page. All pages of each volume shall be appropriately numbered and identified by the complete company name, date and Request for Proposal (RFP) number in the header and/or footer.

Submit the following three files, titled in the format shown below:

- W912DR25RA017_COMPANY NAME _VOLUME_I_FACTORS_1-2-3
- W912DR25RA017_COMPANY NAME _VOLUME_II_FATOR_PRICE_REQ DOCS

A Table of Contents should be created using the Table of Content feature in MS Word. MS Word (doc) files shall use the following page setup parameters:

Margins – Top, Bottom, Left, Right – 1”

Gutter – 0”

From Edge – Header, Footer 0.5”

Page Size, Width – 8.5”

Page Size, Height – 11”

The Cover Letter and Table of Contents are not included in the page count.

The following additional restrictions apply:

b. File Packaging. All of the proposal files shall be compressed (zipped) into one file entitled proposal zip using WinZip version 6.2 or later, or as separate uploads in their native format, i.e., doc, xls, ppt, etc. Files shall be in read-only format, using PDF files. All price breakdown information to aide in the cost/price evaluation shall be submitted in Microsoft Office Excel Read/Write format and viewable in Microsoft Excel 2007 in accordance with FAR provision 52.215-20 Alternate IV "Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data." Each disc shall be externally labeled with the volume number, date, and the offeror's name. **Please note – Self extracting exe files are not acceptable.

c. Content Requirement. All information shall be confined to the appropriate file. The offeror shall confine submissions to essential matters, sufficient to define the proposal in a concise manner, to permit a complete and accurate evaluation of each proposal. Each file of the proposal shall consist of a Table of Contents, Summary Section, and the Narrative discussion. Proprietary information shall be clearly marked. The following shall be included in the Narrative discussion:

(i) VOLUME I – The volume shall be organized into the following sections:

<u>Evaluation Factor</u>	<u>Tab</u>	<u>Title</u>	<u>Maximum Pages</u>
1	1	Past Performance	15 (3 pages per project)
2	2	Management Approach	10
3	3	Technical Approach – Sample Project	10 (includes P6 PDF schedule)

Pages that exceed the page limitations for any factor will not be reviewed and the information contained on those pages will not be considered for evaluation. Including required information on a page that exceeds any of these limitations, and which is therefore not reviewed, may cause a proposal to receive a deficiency for a factor.

Further, an Offeror shall not include information required in Factors 1 and 2 in any other Factor to circumvent the page count(s).

Information contained within margins, other than what is required by the Government, will not be reviewed. Page limitations are per factor, i.e., an Offeror may not reduce the page count for one factor in order to submit additional pages for another factor.

B. BASIS FOR AWARD

2.1. Using the procedures of FAR Parts 15 and 36, the Government intends to award one firm-fixed price construction contract resulting from this solicitation. The award will be made based on the best overall (i.e., best value) proposal that is determined to be the most beneficial to the Government, with appropriate consideration given to the following evaluation factors. **Each factor is rated individually based on the information contained in that specific factor; that is, evaluations will not be made across the factors. Factors 1 through 3 are approximately equally important, but when combined are significantly more important than Factor 4.**

<u>Factor Number</u>	<u>Description</u>	<u>Relative Importance</u>
1	Past Performance	Factors 1,2, and 3 are approximately

2	Management Approach	equally important. Together these factors are significantly more important than Factor 4.
3	Technical Approach (Sample Project)	
4	Price	Factor 4 is significantly less important than Factors 1,2, and 3 combined.

C. FACTORS TO BE EVALUATED

FACTOR 1. PAST PERFORMANCE

For purposes of this solicitation, an “Offeror” may include a group of two (2) or more entities that have formed a “contractor team arrangement” as that term is defined in the Federal Acquisition Regulation (FAR) subpart 9.6. In the case of entities that have formed a contractor team arrangement, the experience and performance history of any member of team, whether or not gained while working with the other member(s) of the currently proposed contractor team arrangement, will be considered as part of the evaluation of the Offeror’s proposal.

An Offeror that relies upon the experience and performance history of a member, members or affiliates of a proposed contractor team arrangement must provide a teaming agreement or commitment (in the case of any affiliates) signed by all parties. The teaming agreement/commitment shall:

- i. Identify the legal name(s) and cage code(s) and UEI number of all entities.
- ii. Describe the nature of each entity’s relationship (partnership, joint venture, prime/sub or mentor/protégé) and their role on this project as part of their proposal.
- iii. The Offeror will be expected to maintain that arrangement during performance of any contract awarded to that Offeror under this solicitation.
- iv. List the estimated percentage of work to be completed by each member submitted for the solicitation.

The following are to be used in determining the status of the Offeror’s team for the evaluation of project submissions under Factor 1:

- In the case of contractor team arrangements involving a Prime Contractor and Subcontractor(s), where the Prime Contractor submits the proposal in response to this solicitation, the Prime Contractor is considered the “Prime Offeror.”
- In the case of joint ventures, the “Prime Offeror” experience can come from any of the entities involved in the venture.

In the case of mentor/protégé relationship, the relationship must be established by the two Offerors and approved by the chosen Government Agency prior to proposal submission. Once the relationship has been approved, the “Prime Offeror” experience can come from any of the entities involved in the relationship. The approved mentor/protégé document from the Government Agency must be submitted along with the teaming arrangement.

- In the case of additional projects submitted by subcontractors, the subcontractor must submit the final cost of their portion of the project along with all other required information.
- In the case of Offerors that are large, multi-function firms (consisting of subsidiaries), experience must only be submitted by the segment of the firm

(e.g., division, group, and unit) that is submitting a proposal in response to the solicitation.

- In the case of affiliates, Past Performance of an Offeror's "affiliate," as that term is defined in FAR 2.101, will be evaluated (as described within this section) if the Offeror demonstrates a firm commitment that the affiliate will participate meaningfully in the performance of the contract. This commitment and meaningful participation shall be described in a document signed by authorized representatives of both the Offeror and its affiliate.

Offerors are cautioned that general representations or statements concerning the involvement of the parent or sister company in the performance of the contract for which the Offeror is submitting its proposal are insufficient to credit the Offeror with the corporate experience and past performance of the parent or sister company. When considering whether to credit an Offeror with the corporate experience and past performance of the parent or sister company, the Government will take into account whether the resources of the parent or sister company will be provided or relied upon for the performance of the contract such that the parent or sister company will have a meaningful involvement. The parent or sister company's resources may include workforce, management, and/or facilities.

- If a teaming agreement or commitment is not provided, the projects of any team members outside of the Prime Offeror will not be considered. If the Joint Venture/Mentor Protégé is a Small and a Large business, the Small Business will be evaluated as the Prime Offeror.

The Offeror will demonstrate experience by the successful and contractual completion of applicable projects. All narratives must contain sufficient detail to demonstrate recency and relevancy. The information that is required to be supplied is identified on the form provided entitled "EXPERIENCE IN RELEVANT PROJECTS" (Attachment D). Offerors are not required to use the form itself as part of their proposals, but the information requested on the form must be in the Offeror's proposals and shall be in the same format as the form. Each project description must include all information included on Attachment D.

Project Requirements: The Offeror shall submit information on at least three (3) and no more than five (5) new or renovation, construction projects of similar size, scope, and complexity of this solicitation demonstrating recent, relevant, and quality past performance.

- Recent means a construction contract completion date no earlier than six (6) years preceding the date of issuance of this solicitation.
- Relevant means, for each project, a value of at least \$250,000*. To be considered relevant, the collective portfolio of submitted projects must demonstrate experience with elements 1 through 8. *Project narratives should also include discussion of ancillary design efforts (if applicable).*
 1. Experience working in a high security environment that have badging requirements to access military or other secure installations or facilities.
 2. Experience with Supervisory Control and Data Acquisition (SCADA) works.
 3. Experience designing, programming, installing, integrating, and commissioning Building Automation Systems (BAS).
 4. Experience with industrial control design for equipment and processes integrating relay logic, variable frequency drives, and motor protection relays.
 5. Experience with fabrication and installation of new and modified control panels.
 6. Experience programming, configuring, and commissioning variable frequency drives, SEL motor protective relays (e.g. Allen Bradley PLCs).

7. Experience with scheduling and sequencing work to ensure minimal impact to water production and allowing impacted equipment to be returned to service within 4 hours during emergencies.

8. Experience with projects that required CompTIA Security+ certification

** considering adjustment for escalation from project completion to 2025, all escalation values are to be labeled as escalated and the Offeror must explain in detail their escalation rationale, which must include any formulas, calculations, assumptions, etc.*

Lists, charts/matrices and bullets will be accepted when identifying relevant elements, however, such chart will not be considered sufficient for demonstration of relevancy. A narrative explanation as to the project's relevancy is required.

It is the responsibility of the Offeror to identify, detail and demonstrate the relevancy of the submitted projects to the solicitation criteria elements. The evaluation committee WILL NOT make assumptions.

If the portfolio of projects does not address the above minimum requirements, the proposal will still be evaluated; however, it may demonstrate a potential increased risk of unsuccessful contract performance.

Task orders can also be submitted under Factor 1; however, each task/delivery order submitted must individually meet the requirements of the factor. Submissions of multiple task/delivery orders as one project will not be accepted or evaluated.

- Quality means for each of the projects submitted, provide a Contractor Performance Assessment Reporting System (CPARS) evaluation, if available. If an interim or final CPARS evaluation is available, a Past Performance Questionnaire (PPQ) is not required to be submitted. If an interim or final CPARS evaluation is not available, a PPQ for the reference project is to be submitted. The (PPQ) shall be completed by a representative of the owner that provides the owner's opinion of the Offeror's past performance for the project. The Past Performance Questionnaire (Form PPQ-0) included in the RFP (Attachment B) is provided for the Offeror or its team members to submit to the owner for each project. Ensure correct phone numbers and email addresses are provided for the owner point of contact. Organize all Past Performance Information in the same order in which the Projects are submitted.

Submit completed PPQs with your proposal. If the Offeror is unable to obtain a completed PPQ from an owner for a project(s) before proposal closing date, the Offeror should complete and submit with the proposal the first page of the PPQ, which will provide contract and client information for the respective project(s). At the owner's discretion, PPQs may be submitted directly to the Government's point of contact, Angela Padua, via email at angela.s.padua@usace.army.mil with a copy to sharon.l.alexander@usace.army.mil prior to proposal closing date. Ensure PPQs submitted reference the solicitation number. If you have questions regarding the PPQs, or require assistance, please contact Angela Padua. Previously completed PPQs may be submitted provided that the documents do not reference any other solicitation. Submitted PPQs must only reference this solicitation.

Submit copies of Federal/DoD/Navy/Army performance reviews even if they may be in the agency's databases, i.e., Contractor's copy of CPARS evaluations for each of the projects submitted, to ensure the agency has all relevant past performance information. Provide the UEI and CAGE code(s) for the prime contractor and all teaming partners, e.g., design firms, key subcontractors, joint venture partners, whose experience is included in this Factor. While the Government may elect to consider data from other sources, the burden of providing detailed, current, accurate, and complete past performance information rests with the Offeror.

The Government may contact and interview the owner's representative identified on the Past Performance Questionnaires and reserves the right to interview other individuals acting for the owner's representative if the owner's representative is not available. In addition, the Government may review any other sources of information for evaluating past performance.

Past performance information may be obtained from any other sources available to the Government, to include, but not limited to, Contractor Performance Assessment Reporting System (CPARS), Federal Awardee Performance and Integrity Information System (FAPIS), Electronic Subcontract Reporting System (eSRS), or other databases; interviews with Owners, Program Managers, Contracting Officers, and Fee Determining Officials; and the Defense Contract Management Agency.

At no time during this process, or during any debriefing, or after any award, will the names of the individuals providing reference information about an Offeror's past performance be revealed to the Offerors or to any other party. Offerors will be afforded the opportunity to respond to adverse comments made by references in accordance with guidelines identified in FAR Part 15.3. In this case, relevant comments will be extracted and provided to the Offeror.

FACTOR 2 - MANAGEMENT APPROACH: The Offeror shall provide an overall management approach to this SATOC in narrative form. The Offeror's narrative must be specific to the solicitation requirements (boilerplates and company histories/summaries will not be accepted) and contain sufficient detail to demonstrate management capability. The management approach shall include the following sections:

- (1) Organization Chart: The Offeror must submit an organizational chart identifying the proposed management team that will execute the SATOC at an overall contract and task order level.

This organizational chart must include the following:

- The Offeror's key personnel that will manage the SATOC.
- In the case of an Offeror utilizing individuals from affiliates as key personnel, the affiliate company must be identified in the chart with the individual's name.
- Direct primary and secondary Point of Contacts (POCs) for this SATOC
- Key Subcontractors (If the subcontract firms have not been selected at the time of proposal submission, the Offeror must identify the intended subcontract trades)

- (2) Management Narrative: The Offeror must provide a narrative to describe the proposed management structure of the construction team and address the following:

- The Offeror's proposed approach to adequately staff and coordinate the project team to include both the prime and subcontractor firms and the roles and responsibilities of their key personnel within the management team.
- Discuss how the home office staff will support the overall contract.
- The Offeror's current workload and how their company can manage multiple, concurrent projects/task orders in different locations.
- Describe how the Offeror would streamline the process of receipt of task order requirements to award.
- Describe how the project teams, to include the subcontractors and the Government, will communicate with each other to achieve results

- (3) Subcontractor Management Narrative: The Offeror shall provide a narrative to describe the proposed subcontractor management structure for the construction team. This narrative should provide a clear depiction of the project team structure including authorities and the delegations of authority within the team. The narrative must include the following information:

- Describe how subcontractors are managed by the prime contractor to include flow-down of contract requirements, duties, responsibilities, and coordination.
- Plans to coordinate and select subcontractors throughout the Baltimore District area of responsibility (AOR).
- Discuss how non-performance by subcontractors is handled by the Prime contractor.

- (4) Quality Control Narrative: The Offeror shall discuss quality management methods throughout ancillary design and the construction process.

FACTOR 3 - SAMPLE PROJECT - TECHNICAL APPROACH: The Offeror shall provide an overall technical approach to the project in narrative form. All narratives must contain sufficient detail to demonstrate technical capability.

- (1) Project Narrative: The Offeror must provide a start-to-finish narrative identifying and describing how the critical elements identified in the schedule shall be completed in accordance with the solicitation specifications.
- (2) Pre-Award Project Schedule: The Offeror shall provide a PDF P6 project schedule showing the proposed sequencing of work. The schedule shall show the critical path, adequate detail, logic and sequences to demonstrate a reasonable approach and understanding of the solicitation requirements and project specifications to ensure an on-time completion of the project.

At minimum the P6 project schedule shall include the following significant features* of work including durations:

- Start-Up Activities
- Phasing
- Critical Path
- Permitting
- Material procurement to include any long lead items
- Submittal processing/review/approval activities
- Mobilization
- Site Preparation
- Fabrication and delivery of materials
- Assembly/disassembly
- Installation
- Testing and Commissioning
- Demobilization and
- Closeout

*If any significant feature of work is not included in the submission package, the Offeror must explain and justify the omission.

The critical path should clearly identify the longest sequence of tasks (in time) from start to finish to complete the project. Period of performance (POP) is considered to be NTP to project completion.

3. **VOLUME II - FACTOR 4 - PRICE PROPOSAL** – This volume will be organized into the following sections, (Price/Solicitation, Offer and Award Documents, and Certification/Representations.

<u>Tab</u>	<u>Title</u>
1	SF1442 (Solicitation, Offer and Award
2	Certificate of Corporation Principal/Authority
3	Section 00 45 00 Representation/Certification
4	Teaming Agreement

a. Electronic Copy. The Offeror shall provide a completed Price Schedule. The offeror shall provide overhead and profit rates as well as construction task order level personnel rates for the Sample Project. The Offeror will also provide their planned overhead and profit rates as well as construction task order level personnel rates for the base year and subsequent years and escalation factors.

b. Compliance. Failure to comply with the RFP requirements for Cost information may result in an

adverse assessment of an offeror's proposal and reduce or eliminate its change of being selected for award. Offerors shall ensure that the information presented in this volume is consistent and correlates with the information contained in the other proposal volumes. Also, the Offeror shall ensure that the information submitted in this volume is consistent with and fully supports the amounts set forth in the SF 1442 and continuation sheets.

c. General Instructions. In accordance with Federal Acquisition Regulation (FAR) 15.402 and 15.403-1, certified cost or pricing data are not required based on the fact that adequate competition is expected for this procurement. Information other than certified cost or pricing data will be provided to the extent necessary to determine fair and reasonable price. FAR 52.215-20- Alternate IV will be included in the solicitation and specify, only the extent necessary, the pricing data and format to permit an adequate evaluation of the proposed price in accordance with FAR 15.403. There are no page limitations for this volume. Proposal information included in this volume which is not directly related to Cost will be disregarded.

d. Solicitations, Offer and Award Documents and Certifications/ Representations

(1) Certifications and Representations – Each offeror shall complete (fill-in and sign) the certifications and representations sections in the request for proposal (do not modify language provided in this section). An Acrobat PDF file shall be created to capture the signatures for submission.

(2) Standard Form 1442 – Offer and Award shall be completed and signed by a person authorized by the Offeror. Offerors shall submit acknowledgement of all amendments to the RFP, either on each Standard Form 30 or on the SF1442.

(3) Contractor Team Arrangement Requirements: For Contractor Team Arrangements, including Joint Ventures, submit the information as required under Factor 1, Past Performance.

D. EVALUATION APPROACH:

FACTOR 1 - PAST PERFORMANCE: The Government will review the proposal to ensure the submission requirements have been met. The Government will then review the Offeror's past performance information, determine the performance recency, relevancy, and quality and assign an overall performance confidence assessment rating. The Government may review any sources of information for evaluation of past performance.

Individual projects may be assessed a higher relevancy if one or more of the following characteristics are met:

- Projects that require Top-Secret Clearance
- Experience working with water treatment processes*
- Experience performing coordination and power protection system studies and improvements (i.e. Arc flash, current leakage, insulation resistance).
- Experience working with medium and low voltage switchgears (replacing and upgrading antiquated components in switchgear and other control systems with compatible specifications transformers), breakers, distribution panels, automatic transfer switches, generators, and conductors*
- Projects that demonstrate industrial controls experience with Allen Bradley CompactLogix or ControlLogix controllers.

**If performed, include discussion of ancillary design efforts*

More relevant past performance will typically be a stronger predictor of future success and have more influence on the past performance confidence rating than past performance of lesser relevance. Past performance with lower degrees of relevance will not be as strong of predictors of likely future contract

performance success and will typically have less influence on the final past performance confidence rating.

Past performance that has little, or no relevance typically do not influence the performance confidence rating; however, adverse past performance could reflect larger company-wide concerns and may impact upon the past performance confidence rating even if the past performance is on projects that are not otherwise very relevant.

FACTOR 2 - MANAGEMENT APPROACH: The Offeror's management approach narrative will meet the requirements of this RFP if the approach is specific to this SATOC and contains sufficient detail to demonstrate management capability.

FACTOR 3 - TECHNICAL APPROACH - SAMPLE PROJECT: The Offeror's technical approach narrative will meet the requirements of this RFP if the approach provides specific discussion on the significant features of work identified in Attachment C: Performance Work Statement (PWS). The narrative and schedule must demonstrate a reasonable approach to the project, an understanding of the requirements of this project and a plan that will lead to successful completion within the project duration.

Offerors are cautioned that "parroting" of the technical requirements with a statement of intent to perform does not reflect an understanding of the requirement or capability to perform.

FACTOR 4 - PRICE PROPOSAL

The Government will perform a price analysis of the proposal, using FAR, Part 15.404- 1(b), price analysis techniques. Proposals will be evaluated for the following:

Compliance: The Price proposal submitted by the Offeror will be evaluated for compliance based upon the submission requirements contained above.

Errors: The Offeror's Price proposal will be reviewed for errors and/ or omissions. The Offeror may be given an opportunity to clarify certain aspects of their proposal at the sole discretion of the Contracting Officer.

Unbalanced Pricing: The Offeror's overall Price proposal will be evaluated for unbalanced pricing as defined in FAR 15.404-1(g). An offer may be rejected if the contracting officer determines that the lack of balance poses an unacceptable risk to the Government (see FAR 15.404-1(g)(1) through FAR 15.404-1(g)(3)). Firms are cautioned to distribute direct costs, such as material, labor, equipment, subcontracts, etc. and to evenly distribute indirect costs, such as job overhead, home office overhead, bond, etc., to the appropriate contract line items. Both parties shall presume that field overhead costs through the proposed contract duration are inclusive in the offered price for the contract.

Reasonableness: Prices in an Offeror's proposal and supplemental pricing breakdown are required to in order to determine price reasonableness. The price must be deemed fair and reasonable.

The Offeror's proposed CLINs may be evaluated, using one or more of the techniques described in FAR 15.404-1 in order to determine if they are fair and reasonable.

Proof of Bonding Capability: The Bond Surety Letter will be evaluated on a PASS/FAIL basis.

Total Evaluated Price: The total evaluated price is the sum of all CLINs.

D. RATING METHODS & DEFINITIONS:

a. **Proposal Compliance Review:** The proposal compliance review will ensure that all required forms and certifications are complete, that the technical and price proposals have been received and that the Offerors are eligible to propose. Offerors are advised that the evaluation and ratings of all proposals will be conducted

in strict confidence. However, an Offeror's failure to provide all of the requested information may adversely affect the evaluation or result in rejection of the proposal as nonresponsive. Offerors with a rating of unacceptable for any factor will not be considered for award. Each factor is rated individually based on the information contained in that specific factor; that is, evaluations will not be made across the factors, nor will information found in one factor be used in the evaluation of another factor.

b. Factors 1-3 (Volume I) of the proposals will be evaluated, by the Source Selection Evaluation Board (SSEB) as established by the Source Selection Authority (SSA), based upon the factors listed below. Offerors submitting proposals for this project should limit submissions to data essential for the evaluation of proposals. Factors 1-3 will be adjectivally rated.

Factor 1 – Past Performance

Factor 2 – Management Approach

Factor 3 – Technical Approach – Sample Project

Factor 4 - Price

1. Rating. The adjective/descriptor assigned by the evaluators to the non-cost/price factors. It represents their conclusions as to the quality of the proposal, supported by narrative write-ups identifying the associated strengths, weaknesses, deficiencies, risks, and uncertainties. The strengths, weaknesses, etc., are the findings that support the rating adjective.
2. Factor Rating Definitions. The SSEB will use a common set of adjectival ratings to evaluate non-Price Factors. The components of Factors 2 & 3 will be assessed for significant strengths, strengths, significant weaknesses, weaknesses, deficiencies, risks, and uncertainties. Each proposal will be evaluated in accordance with the requirements set forth in the RFP, utilizing adjectival ratings as shown in the tables below.

Past Performance Rating. There are three aspects to the past performance evaluation: recency, relevancy and quality). All three aspects must be considered for each of the contracts or requirements evaluated.

- 1) Recency. The first is to evaluate the recency of the Offeror's past performance. To be considered recent, projects must have a construction contract completion date no earlier than six (6) years preceding the date of issuance of this solicitation. Projects that have a Beneficial Occupancy Date (BOD) within the same date range will also be considered.
- 2) Relevancy. The second is to determine how relevant a recent effort accomplished by the Offeror is to the effort to be acquired through the source selection. For a project to meet a relevancy element the project submission must include a detailed description of how the project met that relevancy element within the list above, under "Project Requirements". To be considered relevant, the offeror's performance information will be assessed on the similarity between the work performed and this solicitation's performance requirements.
- 3) Quality. The third aspect of the past performance evaluation is to establish the overall quality of the Offeror's past performance. The Government determines the quality of the Offeror's performance, general trends, and usefulness of the information and incorporate these into the performance confidence assessment.

Factor 1 will be assigned a Performance Relevancy rating from Table 1 and a Performance Confidence Assessment rating from Table 2 based on the offeror's overall record of recency, relevancy, and quality of past performance. The

offeror will be evaluated on the expectation of meeting the solicitation requirements by considering the offeror's demonstrated recent and relevant record of performance along with a confidence assessment of successful performance.

Table 1. Past Performance Relevancy Ratings

Rating	Description
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

Performance Confidence Assessment. The past performance confidence assessment rating is based on the Offeror's overall record of recency, relevancy, and quality of performance. It will be based on the past performance of the firms or that of its predecessor, if applicable. An entity may not establish past performance based on the past performance of its key personnel apart from that of the entity.

The following ratings (Table 2) will be used to identify the Government's confidence in the Offeror's Past Performance. These ratings will be influenced by the relevancy ratings, above, the past performance questionnaires (PPQ-0) as well as any Federal Awardee Performance and Integrity Information System (FAPIS) ratings, Contractor Assessment Reporting System (CPARS) ratings or other databases using all CAGE/UEI of team members (partnership, joint venture, teaming arrangement, or parent company/subsidiary/affiliate) identified in the Offeror's proposal.

In the case of Offerors for which no recent and relevant performance record is available or the Offeror's performance report is so sparse that no meaningful confidence assessment rating can be reasonably assigned the Offeror may not be evaluated favorably or unfavorably on the factor of past performance. In this case, the Offeror's past performance is unknown and assigned a performance confidence rating of "neutral."

Table 2. Performance Confidence Assessments

Rating	Description
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available, or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.

In accordance with the Army Source Selection Supplement (AS3), Section 3.1, the Army methodology for evaluating Technical Approach and Related Risk is the Combined Technical/Risk Rating, (see Table 3 below). This methodology

considers risk, in conjunction with the strengths, weaknesses, uncertainties, and deficiencies in determining technical ratings. Combined technical/risk evaluations shall utilize the combined technical/risk ratings (see Table 3) and risk descriptions (see Table 4) below:

(NOTE: THE ARMY METHODOLOGY FOR EVALUATING TECHNICAL APPROACH AND RELATED RISK IS COMBINED TECHNICAL/RISK RATING)

Technical Rating: Combined Technical/Risk (DoD Source Selection Procedures 3.1.2.2)

The following ratings will be utilized in the evaluation of Factors 2 & 3 (Management & Technical Approach – Sample Project):

TABLE 3 – COMBINED TECHNICAL/RISK RATINGS	
Adjectival Rating	Definition
Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

TABLE 4 - Technical Risk Ratings	
Adjectival Rating	Description
Low	Proposal may contain weakness/weaknesses which have low potential to cause disruption of schedule, increased cost, or degradation of performance. Normal contractor emphasis and normal Government monitoring will likely be able to overcome any difficulties.
Moderate	Proposal contains a significant weakness or combination of weaknesses which may have a moderate potential to cause disruption of schedule, increased cost, or degradation of performance. Special contractor emphasis and close Government monitoring will likely be able to overcome any difficulties.
High	Proposal contains a significant weakness or combination of weaknesses which is likely to have high potential to cause significant disruption of schedule, increased cost or degradation of performance. Special contractor emphasis and close Government monitoring will unlikely be able to overcome any difficulties
Unacceptable	Proposal contains a deficiency or a combination of significant weaknesses that causes an unacceptable level of risk of unsuccessful performance.

CLAUSES INCORPORATED BY FULL TEXT

52.233-2 SERVICE OF PROTEST (SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from

USACE Baltimore District
ATTN: Contracting Officer
2 Hopkins Plaza, 03-E-12
Baltimore, Maryland, 21201

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.236-27 SITE VISIT (CONSTRUCTION) (FEB 1995) – ALTERNATE I (FEB 1995)

(a) The clauses at 52.236-2, Differing Site Conditions, and 52.236-3, Site Investigations and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, offerors or quoters are urged and expected to inspect the site where the work will be performed.

(b) An organized site visit has been scheduled for--
Tuesday, 17 June 2025

(c) Participants will meet at –
5900 MacArthur Blvd. NW
Washington, DC 20016

Please contact Angela Padua at angela.s.padua@usace.army.mil **by 11AM on 13 June 2025** if you plan to attend the site visit.

(End of provision)

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is

cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

(End of provision)

52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any **Defense Federal Acquisition Regulation Supplement** (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

PROJNET

Bidder Inquires and Government Responses:

Technical inquiries and questions relating to this solicitation are to be submitted via Bidder Inquiry in ProjNet at (<https://www.projnet.org>) No Later Than (NLT) **20 June 2025, 11AM EST**. To submit and review inquiry items, prospective vendors will need to use the Bidder Inquiry Key presented below and follow the instructions listed below the key for access. A prospective vendor who submits a comment/question will receive an acknowledgement of their comment/question via email. Another email to the same address will notify the prospective vendor once the reply is available for viewing.

The Bidder Inquiry Key is: UFCNVT-8APGSI

Specific Instructions for ProjNet Bid Inquiry Access:

1. From the ProjNet home page linked above, click on Quick Add on the upper right side of the screen.
2. Identify the Agency. This should be marked as USACE.
3. Key. Enter the Bidder Inquiry Key listed above.
4. Email. Enter the email address you would like to use for communication.
5. Click Continue. A page will then open saying that a user account was not found and will ask you to create one using the provided form.
6. Enter your First Name, Last Name, Company, City, State, Phone, Email, Secret Question, Secret Answer, and Time Zone. Make sure to remember your Secret Question and Answer as they will be used from this point on to access the ProjNet system.
7. Click Add User. Once this is completed you are now registered within ProjNet and are currently logged into the system.

Specific Instructions for Future ProjNet Bid Inquiry Access:

1. For future access to ProjNet, you will not be provided any type of password. You will utilize your Secret Question and Secret Answer to log in.
2. From the ProjNet home page linked above, click on Quick Add on the upper right side of the screen.
3. Identify the Agency. This should be marked as USACE.

4. Key. Enter the Bidder Inquiry Key listed above.
5. Email. Enter the email address you used to register previously in ProjNet.
6. Click Continue. A page will then open asking you to enter the answer to your Secret Question.
7. Enter your Secret Answer and click Login. Once this is completed you are now logged into the system.

Responses to RFIs via ProjNet are for informational purposes only. Official responses will be provided by amendment.

Section 00 21 16 - Instructions to Proposers

SAMPLE PROJECT SOW**SAMPLE PROJECT****PERFORMANCE WORK STATEMENT (PWS)**

Admin Building Switchgear & Generator Services
Washington Aqueduct, Washington, D.C.
03/07/25

BACKGROUND

The Washington Aqueduct (WA), a division of the Baltimore District United States Army Corps of Engineers (USACE), treats water drawn from the Potomac River to produce drinking water for Washington, DC, and portions of Northern Virginia. WA is unique in the Department of Defense, and possibly the Nation, in that the Federal Government owns and operates a public utility. WA has the responsibility to provide safe, reliable, and cost-effective drinking water to about one million retail customers, through its three wholesale customers, 24 hours a day, seven days a week. WA is the sole source of potable water supply for most of these customers.

Every building at WA serves an important role in ensuring that WA's mission is not impede. To that end, every building on campus has redundancy in place if their main feeder were to ever go offline. The Admin Building, however, has lost its redundancy, and now relies solely on one feeder and a back-up generator. From initial inspection, it is believed that, due to environmental factors or old age, the connector of one of the switchgears has snapped off, preventing this equipment from closing properly. Additionally, the generator has also been experiencing some problem stopping it from operating as intended. Typically, the generator operates in Auto mode, but for unknown reasons, the equipment has been automatically switching to Manual. Due to this, a WA staff has to be stationed nearby to switch the generator back to Auto for normal operation. Moreover, the control board for this equipment is outdated and does not display properly. WA requires an experienced contractor to diagnose both equipment and determine method to repair and resolve the situation.

LOCATION

Dalecarlia Water Treatment Plant: 5900 MacArthur Blvd NW, Washington DC, 20016

PROJECT SCOPE

In general terms, the scope of this project involves diagnosing several electrical equipment and determining a path forward to effectively resolve the problems. The contractor shall be responsible for procuring any materials, labor, and equipment necessary to perform the following significant features of work:

1. Services Switchgears in the Admin Building

- a. Inspect the two switchgears P87 & P88 and gather the necessary information.
 - i. The works need to be sequenced to ensure that one switchgear is closed and active at all times.
 - ii. If an outage is needed, WA must be notified two weeks in advance.
- b. Compile a damage/deficiencies report for both equipment.
- c. Propose a plan to repair and PM the equipment. The plan cannot proceed without the explicit approval from WA.
 - i. The contractor shall be responsible for any additional de-energization of the switchgear or grounding.
 - ii. The plan must include but are not limited to the following:
 1. Inspect physical, electrical, and mechanical condition including evidence of moisture.
 2. Repair and restore the equipment back to working order.
 3. Clean the unit.

4. Confirm the correct operation and sequencing of electrical and mechanical interlock systems, if applicable.
5. Use appropriate lubrication on moving current-carrying parts and on moving and sliding surfaces.
6. Exercise all active components.
7. Perform an arc flash test and provide the Government with updated label.
- iii. Any existing components that are in good condition and are unused shall be turned over to the Government upon the completion of the repair.
- d. Clean up the work area at the completion of the specific task, or at the close of each workday, whichever comes first, and properly dispose of waste generated in the performance of this contract. Waste disposal will be off site, by the Contractor and shall be in accordance with EPA regulations.
- e. Upon the completion of the repair, the contractor shall operate the equipment and show the Government the equipment is now working as intended.

2. Services the Admin Generator

- a. Inspect the generator and determine the reason that the generator would automatically change mode.
 - i. Propose a plan to repair the equipment. The plan cannot proceed without the explicit approval from WA.
 - ii. Perform the tests on the performance of the generator. A narrative report that details and explains the tests' results shall be submitted to the Government for review. The tests should include, but are not limited to:
 1. Winding Resistance
 2. Insulation Resistance
 3. Load Tests
- b. Inspect the external 120V Diesel Heater for the generator's fuel and determine why the equipment is inoperable.
 - i. A report shall be submitted afterward and must include recommendations to restore the heater back to operation.
- c. Clean up the work area at the completion of the specific task, or at the close of each workday, whichever comes first, and properly dispose of waste generated in the performance of this contract. Waste disposal will be off-site by the Contractor and shall be in accordance with EPA regulations.

3. Upgrades to the Admin Generator and Panel

- a. Inspect the generator control board and greenboard and replace it with the most recent, up-to-date model.
 - i. The new controller should be interfaceable with a laptop, allowing the user to pull up information that is not limited to the following:
 1. Run Time
 2. Fuel Level/Consumption/Capacity
 3. Backlog of Faults / Error Codes detected
 4. Electrical Data
 - a) Output Voltages
 - b) Amperage
 5. If applicable, the status of any ancillary equipment
 - a) Circuit Breaker
 - b) Diesel Motor
 - c) Relays
 6. RPM
 - ii. The new controller should come with a new display touch screen.
 - iii. A new O&M manual shall be submitted for the new controller.
- b. Upgrade the remote alarm panel on the first floor of the Admin Building.

- i. The panel should maintain the number of light indicators and alarms that are present on the existing panel.
 - ii. The panel should be interfaceable with a laptop to present the following information:
 - 1. Run Time
 - 2. Fuel Level/Consumption/Capacity
 - 3. Backlog of Faults / Error Codes detected
 - iii. A new O&M manual shall be submitted for the new panel.
- c. Training shall be provided to WA staff on how to operate the new panel and on any changes to the generator control panel.
 - i. Provide 2 spaced-out training sessions. The sessions can occur on the same day unless requested otherwise by WA.
 - ii. At least one session should be recorded and submitted to the Government.
- d. Clean up the work area at the completion of the specific task, or at the close of each workday, whichever comes first, and properly dispose of waste generated in the performance of this contract. Waste disposal will be off-site, by the Contractor and shall be in accordance with EPA regulations.

GOVERNMENT FURNISHED DATA

Attached are design, as built, and recent sketches of the systems involved. None of these drawings or sketches are warranted to be completely correct. Contractor is responsible for field verification of all electrical components. Drawings attached and primary information content include:

Attachment: 40.13-3.11-13

NOTE: Due to sensitive nature of these drawings, the use and distribution of these drawings should be limited to "For Official Use Only." All plans shall be shredded after use.

WARRANTY

The Contractor shall warrant all new parts and labor provided in this project for 1-year commencing from Government acceptance. All parts purchased by the Government shall also be warranted for 1-year from the date the part is received by the owner. The equipment shall be warranted to be free from defects in workmanship design and materials. If the equipment fails during the warranty period, it shall be repaired and restored to acceptable operating condition at no cost to the Government.

Warranty Plan

- 1) Notification – The Contracting Officer will notify the Contractor verbally or in writing should the need for warranty service arise. All verbal notifications will be followed up in writing to expedite required repair.
- 2) Priority Service – The contractor will perform an on-site inspection to evaluate the situation and determine the course of action. The initial inspection to evaluate the situation will be performed within 4 days. Following the onsite inspection initial work will begin within 2 days and worked continuously to completion or relief.

PROJECT SCHEDULE & OUTAGES

The Contractor shall complete all work items within 240 calendar days after the task order has been awarded.

Normal work hours for Washington Aqueduct are from 6:00 a.m. to 3:30 p.m., Monday through Friday. The contractor is expected to perform their inspection and work during this period and must request and receive approval from the Government if they plan to work outside this period. For any work outside the normal period, WA will need to be notified 1 to 2 weeks in advance. Furthermore, the contractor needs to clearly establish their working hours for those days. The contractor should not select dates close to Government holidays.

Any outages must be scheduled with and approved by the affected parties.

OPERATIONS AND STORAGE AREAS

If the contractor needs to store equipment or material on site, they must first request permission and receive approval from the Engineering Supervisor. Once a location has been designated, the contractor shall confine all operations (including storage of materials) within the areas authorized. The Contractor shall hold and save the Government, its officers, and agents free and harmless from liability of any nature occasioned by the Contractor's performance.

Parking spaces will be designated by the Government before the start of any work on site. The project manager shall coordinate with the Government to determine the best available time to use the loading dock and freight elevator; ensuring that there are no conflicts that can impact the operation of the plant.

SITE RESTORATION

The Contractor shall keep the work area, including storage areas, free from accumulations of waste materials.

Before completing the work, the Contractor shall remove from the work site and premises, any rubbish, tools, equipment, and materials that are not property of the Government. Upon completing the work, the Contractor shall restore the work area to the original condition, to be approved by the Contracting Officer.

ENVIRONMENTAL PROTECTION

The Contractor is required to comply with all Federal, State, and Local environmental regulations.

PERMITS AND LICENSES

The Contractor shall, at his/her own expense, obtain any license or permits required to perform the contract. The Contractor shall comply with all Federal, State, and Local laws, AHJ, and regulations and shall comply with any subsequent changes.

PROJECT OPERATION

Washington Aqueduct is an operational water treatment plant and a critical infrastructure site and the Contractor's access to the work area and the execution of the requirements specified herein shall not interfere with the daily operations of the plant or employees.

QUALITY CONTROL

1. The Contractor shall be responsible for maintaining adequate quality control to satisfactorily meet the specification of this contract. The government will assure quality performance through site inspections, and invoice review.
2. The Contractor shall establish a quality control program to assure the requirements of the contract are provided as specified under all sections of the contract.
3. The Government shall monitor the Contractor's services by conducting site inspections. The Government reserves the right to alter or change the type of inspection plan at its discretion.
4. The Contractor shall designate an on-site representative who has the authority to make decisions, monitor the job for safety and act as an official agent for the contractor in the contractual relationship with the government. This representative or a designee shall be capable of telephonic or personal communication during work hours.

SUBMITTALS

The contractor shall submit the following to the Government for review and approval within 14 calendar days upon the task order award date.

1. Project Schedule – A Gantt bar chart that details how the contractor plans to carry out the work for this project within the allot period, as mentioned above.

2. Work Plan – A plan that details the means and methods that the contractor shall employ to complete the work.
3. Safety Plan/Accident Prevention Plan (APP) – A plan that details the steps the contractor shall take to ensure that the work is performed as safely as possible. The plan shall also include a respond plan in case anything was to happen. Need to be in compliant with the following:
 - a. Latest USACE Safety Manual (EM 385-1-1, Appendix A)
 - i. EM 385-1-1: Section 11 & Appendix Q
 - b. NFPA 70 – National Electrical Code
 - c. NFPA 110 - Standard for Emergency and Standby Power Systems
 - d. OSHA – Occupational Safety and Health Association
4. Quality Control Report – A daily report that detailed what tasks was worked on or completed for that day.

Near the completion of the project, the following documents are expected to be submitted to the Government:

1. Materials Datasheets – Any new materials that are not an in-kind replacement shall have their datasheets submitted to the Government.
2. Warranty – Provide a 1-year warranty for all labor and new materials procured.
3. Reports – Provide a complete report for all test results.
4. Operations & Maintenance Manual – A hard copy and an electronic copy shall be provided upon the completion of the project. Need to include but are not limited to the followings:
 - a. General Information
 - b. Safety Precautions
 - c. Installation Instructions
 - d. Maintenance Procedures
 - e. Operating Instructions
 - f. Engineering Drawings (If applicable)
5. As-Built – Must show any modifications/changes performed by the contractor.

SECURITY

All Contractor and subcontractor personnel shall be badged by the WA Security Office. Coordinate with the project manager and the WA Security Office to receive a badge. All personnel without badges must be escorted by badged personnel. All personnel shall be escorted by WA personnel during off-hours, regardless of badging status.

POINT OF CONTACT:

Project Manager: Huy Do

Electrical Engineer
 Washington Aqueduct Division
 Phone: (202) 768-6127
 Email: huy.b.do@usace.army.mil

Contracting Officer:

Sharon L Alexander
 Contracting Officer
 Contracting Division, Baltimore District
 Phone: (410) 962-0191
 Email: Sharon.l.alexnader@usace.army.mil

SAMPLE PROJECT PRICE SCHEDULE

Item No.	Description	Amount
0001	All costs in connection with the Services Switchgears in the Admin Building, complete as stated in the Performance Work Statement and as Specified.	\$ _____
0002	All costs in connection with the Services the Admin Generator, complete as stated in the Performance Work Statement and as specified.	\$ _____
0003	All costs in connection with the Upgrades to the Admin Generator and Panel, complete as stated in the Performance Work Statement and as specified.	\$ _____
TOTAL BID AMOUNT \$		_____

Section 00 45 00 - Representations and Certifications

CLAUSES INCORPORATED BY FULL TEXT

52.204-8 ANNUAL REPRESENTATIONS AND CERTIFICATIONS (JAN 2025)

(a)(1) The North American Industry Classification System (NAICS) code for this acquisition is 238210.

(2) The small business size standard is \$19,000,000.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition--

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

[] Paragraph (d) applies.

[] Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c) (1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless—

(A) The acquisition is to be made under the simplified acquisition procedures in Part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements--Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that—

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services--Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations--Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance--Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) 52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.

(xv) 52.222-25, Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA- designated items.

(xix) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals--Representation. This provision applies to solicitations that include the provision at 52.204-7.

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan--Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran—Representation and Certification. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

(i) 52.204-17, Ownership or Control of Offeror.

(ii) 52.204-20, Predecessor of Offeror.

(iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

(iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Certification.

(v) 52.222-52 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Certification.

(vi) 52.227-6, Royalty Information.

(A) Basic.

(B) Alternate I.

(vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The Offeror has completed the annual representations and certifications electronically in SAM accessed through <https://www.sam.gov>. After reviewing the SAM information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause	Title	Date	Change
-----	-----	-----	-----
-----	-----	-----	-----
-----	-----	-----	-----

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services--Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications--Commercial Products and Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) Definitions. As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) Representations. The Offeror represents that--

(1) It [____] will, [____] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that--

It [____] does, [____] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures.

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) Definitions. As used in this provision--

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means--

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror () has () does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked “has” in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- (iii) In an administrative proceeding, a finding of fault and liability that results in--

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.209-11 REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2016)

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that--

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that--

(1) It is [] is not [] a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is [] is not [] a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS (FEB 2024)

(a) Definitions. As used in this provision--

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern--

(1)(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran or;

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) Service-disabled veteran, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that--

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern--

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that--

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by--

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business concern means a small business concern--

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business concern means a small business concern--

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)(1) The North American Industry Classification System (NAICS) code for this acquisition is [insert NAICS code].

(2) The small business size standard is [insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (i.e., nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition--

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) Representations.

(1) The offeror represents as part of its offer that--

(i) It [] is, [] is not a small business concern; or

(ii) It [] is, [] is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it [] is, [] is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it [] is, [] is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The offeror represents as part of its offer that it [] is, [] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents as part of its offer that it [] is, [] is not a joint venture that complies with the requirements of 13 CFR

127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(6) Veteran-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it [____] is, [____] is not a veteran-owned small business concern.

(7) SDVOSB concern. [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(6) of this provision.] The offeror represents as part of its offer that it [____] is, [____] is not an SDVOSB concern.

(8) SDVOSB joint venture eligible under the SDVOSB Program. [Complete only if the offeror represented itself as a SDVOSB concern in paragraph (c)(7) of this provision]. The offeror represents as part of its offer that it [____] is, [____] is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(9) HUBZone small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that--

(i) It [____] is, [____] is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It [____] is, [____] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Notice. Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall—

(1) Be punished by imposition of fine, imprisonment, or both;

(2) Be subject to administrative remedies, including suspension and debarment; and

(3) Be ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

252.203-7005 REPRESENTATION RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (SEP 2022)

(a) Definition. Covered DoD official is defined in the clause at 252.203-7000, Requirements Relating to Compensation of Former DoD Officials.

(b) By submission of this offer, the Offeror represents, to the best of its knowledge and belief, that all covered DoD officials employed by or otherwise receiving compensation from the Offeror, and who are expected to undertake

activities on behalf of the Offeror for any resulting contract, are presently in compliance with all applicable post-employment restrictions, including those contained in 18 U.S.C. 207, 41 U.S.C. 2101-2107, 5 CFR part 2641, section 1045 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91), and Federal Acquisition Regulation 3.104-2.

(End of provision)

252.204-7007 ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2024)

Substitute the following paragraphs (b), (d) and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at FAR 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (e) applies.

☐ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment--Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: [Contracting Officer check as appropriate.]

___ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

___ (ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.

___ (iii) 252.225-7020, Trade Agreements Certificate.

___ Use with Alternate I.

___ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

___ (v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.

___ Use with Alternate I.

___ Use with Alternate II.

___ Use with Alternate III.

___ Use with Alternate IV.

___ Use with Alternate V.

___ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

___ (vii) 252.232-7015, Performance-Based Payments--Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date ____]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS provision No.	Title	Date	Change

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

Section 00 70 00 - Conditions of the Contract

INSPECTION AND ACCEPTANCE TERMS

Supplies/services will be inspected/accepted at:

CLIN	INSPECT AT	INSPECT BY	ACCEPT AT	ACCEPT BY
0001	Destination	Government	Destination	Government

Section 00 72 00 - General Conditions

CLAUSES INCORPORATED BY REFERENCE

52.202-1	Definitions	JUN 2020
52.203-3	Gratuities	APR 1984
52.203-5	Covenant Against Contingent Fees	MAY 2014
52.203-6	Restrictions On Subcontractor Sales To The Government	JUN 2020
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity	MAY 2014
52.203-10	Price Or Fee Adjustment For Illegal Or Improper Activity	MAY 2014
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions	SEP 2024
52.203-12	Limitation On Payments To Influence Certain Federal Transactions	JUN 2020
52.203-13	Contractor Code of Business Ethics and Conduct	NOV 2021
52.203-16	Preventing Personal Conflicts of Interest	JUN 2020
52.204-7	System for Award Management	NOV 2024
52.204-9	Personal Identity Verification of Contractor Personnel	JAN 2011
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards	JUN 2020
52.204-13	System for Award Management Maintenance	OCT 2018
52.204-18	Commercial and Government Entity Code Maintenance	AUG 2020
52.204-19	Incorporation by Reference of Representations and Certifications.	DEC 2014
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment	NOV 2021
52.204-27	Prohibition on a ByteDance Covered Application	JUN 2023
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded	JAN 2025
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters	OCT 2018
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations	NOV 2015
52.210-1	Market Research	NOV 2021
52.211-15	Defense Priority And Allocation Requirements	APR 2008
52.215-2	Audit and Records--Negotiation	JUN 2020
52.215-9	Changes or Additions to Make-or-Buy Program	OCT 1997
52.215-10	Price Reduction for Defective Certified Cost or Pricing Data	AUG 2011
52.215-12	Subcontractor Certified Cost or Pricing Data	JUN 2020
52.215-22	Limitations on Pass-Through Charges--Identification of Subcontract Effort	OCT 2009
52.215-23	Limitations on Pass-Through Charges	JUN 2020
52.222-3	Convict Labor	JUN 2003
52.222-4	Contract Work Hours and Safety Standards - Overtime Compensation	MAY 2018
52.222-6	Construction Wage Rate Requirements	AUG 2018
52.222-7	Withholding of Funds	MAY 2014
52.222-8	Payrolls and Basic Records	JUL 2021
52.222-9 (Dev)	Apprentices and Trainees (DEVIATION 2025-O0003)	MAR 2025
52.222-10	Compliance with Copeland Act Requirements	FEB 1988
52.222-11	Subcontracts (Labor Standards)	MAY 2014
52.222-12	Contract Termination-Debarment	MAY 2014

52.222-13	Compliance With Construction Wage Rate Requirements and Related Regulations	MAY 2014
52.222-14	Disputes Concerning Labor Standards	FEB 1988
52.222-15	Certification of Eligibility	MAY 2014
52.222-37	Employment Reports on Veterans	JUN 2020
52.222-40	Notification of Employee Rights Under the National Labor Relations Act	DEC 2010
52.222-54	Employment Eligibility Verification	JAN 2025
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026	JAN 2022
52.222-62	Paid Sick Leave Under Executive Order 13706	JAN 2022
52.223-2	Reporting of Biobased Products Under Service and Construction Contracts.	MAY 2024
52.223-5	Pollution Prevention and Right-to-Know Information	MAY 2024
52.225-11	Buy American--Construction Materials Under Trade Agreements	NOV 2023
52.225-13	Restrictions on Certain Foreign Purchases	FEB 2021
52.227-1	Authorization and Consent	JUN 2020
52.227-2	Notice And Assistance Regarding Patent And Copyright Infringement	JUN 2020
52.227-4	Patent Indemnity-Construction Contracts	DEC 2007
52.228-2	Additional Bond Security	OCT 1997
52.228-5	Insurance - Work On A Government Installation	JAN 1997
52.228-11	Individual Surety--Pledge of Assets	FEB 2021
52.228-12	Prospective Subcontractor Requests for Bonds	DEC 2022
52.228-14	Irrevocable Letter of Credit	NOV 2014
52.229-3	Federal, State And Local Taxes	FEB 2013
52.232-5	Payments under Fixed-Price Construction Contracts	MAY 2014
52.232-17	Interest	MAY 2014
52.232-18	Availability Of Funds	APR 1984
52.232-23	Assignment Of Claims	MAY 2014
52.232-23	Assignment Of Claims	MAY 2014
52.232-27	Prompt Payment for Construction Contracts	JAN 2017
52.232-33	Payment by Electronic Funds Transfer--System for Award Management	OCT 2018
52.232-39	Unenforceability of Unauthorized Obligations	JUN 2013
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	MAR 2023
52.233-1	Disputes	MAY 2014
52.233-3	Protest After Award	AUG 1996
52.233-4	Applicable Law for Breach of Contract Claim	OCT 2004
52.236-2	Differing Site Conditions	APR 1984
52.236-3	Site Investigation and Conditions Affecting the Work	APR 1984
52.236-5	Material and Workmanship	APR 1984
52.236-6	Superintendence by the Contractor	APR 1984
52.236-7	Permits and Responsibilities	NOV 1991
52.236-8	Other Contracts	APR 1984
52.236-9	Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements	APR 1984
52.236-10	Operations and Storage Areas	APR 1984
52.236-11	Use and Possession Prior to Completion	APR 1984
52.236-12	Cleaning Up	APR 1984
52.236-13	Accident Prevention	NOV 1991
52.236-15	Schedules for Construction Contracts	APR 1984
52.236-21	Specifications and Drawings for Construction	FEB 1997

52.236-26	Preconstruction Conference	FEB 1995
52.242-13	Bankruptcy	JUL 1995
52.242-14	Suspension of Work	APR 1984
52.243-4	Changes	JUN 2007
52.244-6	Subcontracts for Commercial Products and Commercial Services	JAN 2025
52.247-64	Preference for Privately Owned U.S. - Flag Commercial Vessels	NOV 2021
52.248-3	Value Engineering-Construction	OCT 2020
52.249-2 Alt I	Termination for Convenience of the Government (Fixed-Price) (Apr 2012) - Alternate I	SEP 1996
52.249-10	Default (Fixed-Price Construction)	APR 1984
52.252-6	Authorized Deviations In Clauses	NOV 2020
52.253-1	Computer Generated Forms	JAN 1991
252.201-7000	Contracting Officer's Representative	DEC 1991
252.203-7000	Requirements Relating to Compensation of Former DoD Officials	SEP 2011
252.203-7001	Prohibition On Persons Convicted of Fraud or Other Defense-Contract-Related Felonies	JAN 2023
252.203-7002	Requirement to Inform Employees of Whistleblower Rights	DEC 2022
252.203-7002	Requirement to Inform Employees of Whistleblower Rights	DEC 2022
252.203-7004	Display of Hotline Posters	JAN 2023
252.204-7000	Disclosure Of Information	OCT 2016
252.204-7003	Control Of Government Personnel Work Product	APR 1992
252.204-7004	Antiterrorism Awareness Training for Contractors	JAN 2023
252.204-7006	Billing Instructions--Cost Vouchers	MAY 2023
252.204-7008	Compliance With Safeguarding Covered Defense Information Controls	OCT 2016
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting	MAY 2024
252.205-7000	Provision Of Information To Cooperative Agreement Holders	OCT 2024
252.209-7004	Subcontracting With Firms That Are Owned or Controlled By The Government of a Country that is a State Sponsor of Terrorism	MAY 2019
252.215-7002	Cost Estimating System Requirements	JAN 2025
252.219-7011	Notification to Delay Performance	JUN 1998
252.223-7006	Prohibition On Storage, Treatment, and Disposal of Toxic or Hazardous Materials	SEP 2014
252.223-7008	Prohibition of Hexavalent Chromium	JAN 2023
252.225-7012	Preference For Certain Domestic Commodities	APR 2022
252.225-7048	Export-Controlled Items	JUN 2013
252.227-7022	Government Rights (Unlimited)	MAR 1979
252.227-7023	Drawings and Other Data to become Property of Government	MAR 1979
252.231-7000	Supplemental Cost Principles	DEC 1991
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports	DEC 2018
252.232-7010	Levies on Contract Payments	DEC 2006
252.236-7000	Modification Proposals-Price Breakdown	DEC 1991
252.243-7002	Requests for Equitable Adjustment	DEC 2022

CLAUSES INCORPORATED BY FULL TEXT

52.211-14 NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY PREPAREDNESS, AND ENERGY PROGRAM USE (APR 2008)

Any contract awarded as a result of this solicitation will be ☐ DX rated order; ☒ DO rated order certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR 700), and the Contractor will be required to follow all of the requirements of this regulation.

(End of provision)

52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION 2025-O0003/ DEVIATION 2025-O0004) (MAR 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services: [Contracting Officer check as appropriate.]

___ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with Alternate I (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

___ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

___ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

___ (4) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community--see FAR 3.900(a).

___ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

___ (6) [Reserved]

___ (7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

___ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

___ (9) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

___ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders--Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115-390, title II).

___ (11)(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders--Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

___ (ii) Alternate I (DEC 2023) of 52.204-30.

___ (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).

___ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

___ (14) [Reserved]

___ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

___ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

___ (17) [Reserved]

___ (18)(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

___ (ii) Alternate I (MAR 2020) of 52.219-6.

___ (19)(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

___ (ii) Alternate I (MAR 2020) of 52.219-7.

___ (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)).

___ (21)(i) 52.219-9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).

___ (ii) Alternate I (NOV 2016) of 52.219-9.

- ____ (iii) Alternate II (NOV 2016) of 52.219-9.
- ____ (iv) Alternate III (JUN 2020) of 52.219-9.
- ____ (v) Alternate IV (JAN 2025) of 52.219-9.
- ____ (22) (i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).
- ____ (ii) Alternate I (MAR 2020) of 52.219-13.
- ____ (23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).
- ____ (24) 52.219-16, Liquidated Damages—Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).
- ____ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).
- ____ (26) (i) 52.219-28, Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).
- ____ (ii) Alternate I (MAR 2020) of 52.219-28.
- ____ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).
- ____ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).
- ____ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).
- ____ (30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).
- ____ (31) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).
- ____ (32) 52.222-19, Child Labor--Cooperation with Authorities and Remedies (JAN 2025) (E.O. 13126).
- ____ (33) [Reserved]
- ____ (34) [Reserved]
- ____ (35)(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).
- ____ (ii) Alternate I (JUL 2014) of 52.222-35.
- ____ (36)(i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).
- ____ (ii) Alternate I (JUL 2014) of 52.222-36.
- ____ (37) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).
- ____ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).
- ____ (39)(i) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

____ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

____ (40) 52.222-54, Employment Eligibility Verification (JAN 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

____ (41)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (MAY 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

____ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

____ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, et seq.).

____ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, et seq.).

____ (44) 52.223-20, Aerosols (MAY 2024) (42 U.S.C. 7671, et seq.).

____ (45) 52.223-21, Foams (MAY 2024) (42 U.S.C. 7671, et seq.).

____ (46) 52.223-23, Sustainable Products and Services (MAR 2025) (DEVIATION 2025-O0004)) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 76711).

____ (47) (i) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

____ (ii) Alternate I (JAN 2017) of 52.224-3.

____ (48) (i) 52.225-1, Buy American--Supplies (OCT 2022)) (41 U.S.C. chapter 83).

____ (ii) Alternate I (OCT 2022) of 52.225-1.

____ (49) (i) 52.225-3, Buy American--Free Trade Agreements--Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).

____ (ii) Alternate I [Reserved].

____ (iii) Alternate II (JAN 2025) of 52.225-3.

____ (iv) Alternate III (FEB 2024) of 52.225-3.

____ (v) Alternate IV (OCT 2022) of 52.225-3.

____ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).

____ (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

____ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

____ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (NOV 2007) (42 U.S.C. 5150).

____ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).

____ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513).

____ (56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).

____ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

____ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

____ (59) 52.232-33, Payment by Electronic Funds Transfer--System for Award Management (OCT 2018) (31 U.S.C. 3332).

____ (60) 52.232-34, Payment by Electronic Funds Transfer--Other than System for Award Management (JUL 2013) (31 U.S.C. 3332).

____ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

____ (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

____ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act--Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

____ (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017)(15 U.S.C. 637(d)(13)).

____ (65) (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

____ (ii) Alternate I (APR 2003) of 52.247-64.

____ (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services: [Contracting Officer check as appropriate.]

____ (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

____ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

____ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards--Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

_____ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards--Price Adjustment (MAY 2014) (29 U.S.C 206 and 41 U.S.C. chapter 67).

_____ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (MAY 2014) (41 U.S.C. chapter 67).

_____ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (MAY 2014) (41 U.S.C. chapter 67).

_____ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022) (E.O. 13658).

_____ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

_____ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792).

_____ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records--Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause—

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders--Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

(B) Alternate I (DEC 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) [Reserved]

(x) [Reserved]

(xi) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (AUG 2018), (41 U.S.C. chapter 67).

(xvi) _____ (A) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

_____ (B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (MAY 2014) (41 U.S.C. chapter 67.)

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (MAY 2014) (41 U.S.C. chapter 67)

(xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E. O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022) (E.O. 13658).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii) (A) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations. (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act--Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately-Owned U.S. Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.216-18 ORDERING. (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from **date of Award** through **August 2030**.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when--

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either--

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 ORDER LIMITATIONS (OCT 1995)

- (a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than **\$2,000**, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.
- (b) Maximum order. The Contractor is not obligated to honor -
- (1) Any order for a single item in excess of **\$1,000,000**;
- (2) Any order for a combination of items in excess of **\$2,000,000**; or
- (3) A series of orders from the same ordering office within **10** days that together call for quantities exceeding the limitation in paragraph (b) (1) or (2) of this section.
- (c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.
- (d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within **5** days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.
- (End of clause)

52.216-22 INDEFINITE QUANTITY. (OCT 1995)

- (a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.
- (b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum". The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum".
- (c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.
- (d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract after **August 2030**.
- (End of clause)

52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 calendar days of contract expiration.

(End of clause)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 60 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed six (6) months.

(End of clause)

52.219-8 UTILIZATION OF SMALL BUSINESS CONCERNS (JAN 2025)

(a) Definitions. As used in this contract--

HUBZone small business concern means a small business concern that meets the requirements described in 13 CFR 126.200, certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Dynamic Small Business Search (DSBS) and SAM.

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern--

(1)(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) Service-disabled veteran, as used in this definition, means a veteran, as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that--

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation and qualified as a small business under the criteria and size standards in 13 CFR part 121, including the size standard that corresponds to the NAICS code assigned to the contract or subcontract.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that--

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by--

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13.CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business concern means a small business concern--

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business concern means a small business concern--

(1) That is at least 51 percent owned by one or more women, or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

(b) It is the policy of the United States that small business concerns, veteran-owned small business concerns, service-disabled veteran-owned small business concerns, HUBZone small business concerns, small disadvantaged business concerns, and women-owned small business concerns shall have the maximum practicable opportunity to participate in performing contracts let by any Federal agency, including contracts and subcontracts for subsystems, assemblies, components, and related services for major systems. It is further the policy of the United States that its prime contractors establish procedures to ensure the timely payment of amounts due pursuant to the terms of their subcontracts with small business concerns, veteran-owned small business concerns, service-disabled veteran-owned small business concerns, HUBZone small business concerns, small disadvantaged business concerns, and women-owned small business concerns.

(c)(1) A joint venture qualifies as a small business concern if--

- (i) Each party to the joint venture qualifies as small under the size standard for the solicitation; or
 - (ii) The protege is small under the size standard for the solicitation in a joint venture comprised of a mentor and protege with an approved mentor-protege agreement under a SBA mentor-protege program. (See 13 CFR 125.9(d).)
- (2) A joint venture qualifies as a HUBZone small business concern if it complies with the requirements in 13 CFR 126.616(a) through (c).
- (d) The Contractor hereby agrees to carry out this policy in the awarding of subcontracts to the fullest extent consistent with efficient contract performance. The Contractor further agrees to cooperate in any studies or surveys as may be conducted by the United States Small Business Administration or the awarding agency of the United States as may be necessary to determine the extent of the Contractor's compliance with this clause.
- (e)(1) Unless the Contractor has reason to question the representation, it may accept a subcontractor's written representations of its size and socioeconomic status as a small business, small disadvantaged business, veteran-owned small business, service-disabled veteran-owned small business, or a women-owned small business if the subcontractor represents that the size and socioeconomic status representations with its offer are current, accurate, and complete as of the date of the offer for the subcontract.
- (2) Unless the Contractor has reason to question the representation, it may accept a subcontractor's representations of its size and socioeconomic status as a small business, small disadvantaged business, veteran-owned small business, service-disabled veteran-owned small business, or a women-owned small business in the System for Award Management (SAM) if--
- (i) The subcontractor is registered in SAM; and
 - (ii) The subcontractor represents that the size and socioeconomic status representations made in SAM are current, accurate and complete as of the date of the offer for the subcontract.
- (3) The Contractor may not require the use of SAM for the purposes of representing size or socioeconomic status in connection with a subcontract.
- (4) In accordance with 13 CFR 121.411, 126.900, 127.700, and 128.600, a contractor acting in good faith is not liable for misrepresentations made by its subcontractors regarding the subcontractor's size or socioeconomic status.
- (5) The Contractor shall confirm that a subcontractor representing itself as a HUBZone small business concern is certified by SBA as a HUBZone small business concern by accessing SAM or by accessing DSBS at https://web.sba.gov/pro-net/search/dsp_dsbs.cfm. If the subcontractor is a joint venture, the Contractor shall confirm that at least one party to the joint venture is certified by SBA as a HUBZone small business concern. The Contractor may confirm the representation by accessing SAM.

(End of clause)

52.219-14 LIMITATIONS ON SUBCONTRACTING (OCT 2022)

- (a) This clause does not apply to the unrestricted portion of a partial set-aside.
- (b) Definition. Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that--
 - (1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) Applicability. This clause applies only to--

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;

(4) Orders expected to exceed the simplified acquisition threshold and that are--

(i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);

(5) Orders, regardless of dollar value, that are--

(i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) Independent contractors. An independent contractor shall be considered a subcontractor.

(e) Limitations on subcontracting. By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for--

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly

situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause--

[Contracting Officer check as appropriate.]

___ By the end of the base term of the contract and then by the end of each subsequent option period; or

X By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protege and its mentor approved by the Small Business Administration, the small business protege shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protege in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.219-17 SECTION 8(a) AWARD (OCT 2019)

(a) By execution of a contract, the Small Business Administration (SBA) agrees to the following:

(1) To furnish the supplies or services set forth in the contract according to the specifications and the terms and conditions by subcontracting with the Offeror who has been determined an eligible concern pursuant to the provisions of section 8(a) of the Small Business Act, as amended (15 U.S.C. 637(a)).

(2) Except for novation agreements, delegates to the **United States Army Corps of Engineers** the responsibility for administering the contract with complete authority to take any action on behalf of the Government under the terms and conditions of the contract; provided, however that the contracting agency shall give advance notice to the SBA before it issues a final notice terminating the right of the subcontractor to proceed with further performance, either in whole or in part, under the contract.

(3) That payments to be made under the contract will be made directly to the subcontractor by the contracting activity.

(4) To notify the **United States Army Corps of Engineers** Contracting Officer immediately upon notification by the subcontractor that the owner or owners upon whom 8(a) eligibility was based plan to relinquish ownership or control of the concern.

(5) That the subcontractor awarded a subcontract hereunder shall have the right of appeal from decisions of the

cognizant Contracting Officer under the “Disputes” clause of the subcontract.

(b) The offeror/subcontractor agrees and acknowledges that it will, for and on behalf of the SBA, fulfill and perform all of the requirements of the contract.

(End of clause)

52.219-28 POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (JAN 2025)

(a) Definitions. As used in this clause--

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern--

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts--

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented its status as any of the small business concerns identified at 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, for the NAICS code assigned to an order (except that paragraphs (c)(1) through (3) of this clause do not apply to an order issued under a Federal Supply Schedule contract at subpart 8.4)--

(1) Set aside exclusively for a small business concern identified at 19.000(a)(3) that is issued under an unrestricted multiple-award contract, unless the order is issued under the reserved portion of an unrestricted multiple-award

contract (e.g., an order set aside for a woman-owned small business under a multiple-award contract that is not set-aside, unless the order is issued under the reserved portion of the multiple-award contract);

(2) Issued under a multiple-award contract set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying multiple-award contract (e.g., an order set aside for a HUBZone small business concern under a multiple-award contract that is set aside for small businesses);

(3) Issued under the part of the multiple-award contract that is set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying set-aside part of the multiple-award contract (e.g., an order set aside for a WOSB concern under the part of the multiple-award contract that is partially set aside for small businesses); and

(4) When the Contracting Officer explicitly requires it for an order issued under a multiple-award contract, including for an order issued under a Federal Supply Schedule contract (see 8.405-5(b) and 19.301-2(b)(2)).

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition--

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraphs (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.

(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it [] is, [] is not a small business concern under NAICS Code assigned to contract number .

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it [] is, [] is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it [] is, [] is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it [] is, [] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it [] is, [] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .]

(6) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it [] is, [] is not a veteran-owned small business concern.

(7) [Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.] The Contractor represents that it [] is, [] is not a service-disabled veteran-owned small business concern.

(8) Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program. The Contractor represents that it [] is, [] is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .]

(9) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that--

(i) It [] is, [] is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It [] is, [] is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.222-50 COMBATING TRAFFICKING IN PERSONS (NOV 2021)

(a) Definitions. As used in this clause--

Agent means any individual, including a director, an officer, an employee, or an independent contractor, authorized to act on behalf of the organization.

Coercion means--

(1) Threats of serious harm to or physical restraint against any person;

(2) Any scheme, plan, or pattern intended to cause a person to believe that failure to perform an act would result in serious harm to or physical restraint against any person; or

(3) The abuse or threatened abuse of the legal process.

Commercially available off-the-shelf (COTS) item--

(1) Means any item of supply (including construction material) that is-

(i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

Commercial sex act means any sex act on account of which anything of value is given to or received by any person.

Debt bondage means the status or condition of a debtor arising from a pledge by the debtor of his or her personal services or of those of a person under his or her control as a security for debt, if the value of those services as reasonably assessed is not applied toward the liquidation of the debt or the length and nature of those services are not respectively limited and defined.

Employee means an employee of the Contractor directly engaged in the performance of work under the contract who has other than a minimal impact or involvement in contract performance.

Forced Labor means knowingly providing or obtaining the labor or services of a person--

(1) By threats of serious harm to, or physical restraint against, that person or another person;

(2) By means of any scheme, plan, or pattern intended to cause the person to believe that, if the person did not perform such labor or services, that person or another person would suffer serious harm or physical restraint; or

(3) By means of the abuse or threatened abuse of law or the legal process.

Involuntary servitude includes a condition of servitude induced by means of--

(1) Any scheme, plan, or pattern intended to cause a person to believe that, if the person did not enter into or continue in such conditions, that person or another person would suffer serious harm or physical restraint; or

(2) The abuse or threatened abuse of the legal process.

Recruitment fees means fees of any type, including charges, costs, assessments, or other financial obligations, that are associated with the recruiting process, regardless of the time, manner, or location of imposition or collection of the fee.

(1) Recruitment fees include, but are not limited to, the following fees (when they are associated with the recruiting process) for--

(i) Soliciting, identifying, considering, interviewing, referring, retaining, transferring, selecting, training, providing orientation to, skills testing, recommending, or placing employees or potential employees;

- (ii) Advertising;
 - (iii) Obtaining permanent or temporary labor certification, including any associated fees;
 - (iv) Processing applications and petitions;
 - (v) Acquiring visas, including any associated fees;
 - (vi) Acquiring photographs and identity or immigration documents, such as passports, including any associated fees;
 - (vii) Accessing the job opportunity, including required medical examinations and immunizations; background, reference, and security clearance checks and examinations; and additional certifications;
 - (viii) An employer's recruiters, agents or attorneys, or other notary or legal fees;
 - (ix) Language interpretation or translation, arranging for or accompanying on travel, or providing other advice to employees or potential employees;
 - (x) Government-mandated fees, such as border crossing fees, levies, or worker welfare funds;
 - (xi) Transportation and subsistence costs--
 - (A) While in transit, including, but not limited to, airfare or costs of other modes of transportation, terminal fees, and travel taxes associated with travel from the country of origin to the country of performance and the return journey upon the end of employment; and
 - (B) From the airport or disembarkation point to the worksite;
 - (xii) Security deposits, bonds, and insurance; and
 - (xiii) Equipment charges.
- (2) A recruitment fee, as described in the introductory text of this definition, is a recruitment fee, regardless of whether the payment is--
- (i) Paid in property or money;
 - (ii) Deducted from wages;
 - (iii) Paid back in wage or benefit concessions;
 - (iv) Paid back as a kickback, bribe, in-kind payment, free labor, tip, or tribute; or
 - (v) Collected by an employer or a third party, whether licensed or unlicensed, including, but not limited to--
 - (A) Agents;
 - (B) Labor brokers;
 - (C) Recruiters;
 - (D) Staffing firms (including private employment and placement firms);
 - (E) Subsidiaries/affiliates of the employer;

(F) Any agent or employee of such entities; and

(G) Subcontractors at all tiers.

Severe forms of trafficking in persons means--

(1) Sex trafficking in which a commercial sex act is induced by force, fraud, or coercion, or in which the person induced to perform such act has not attained 18 years of age; or

(2) The recruitment, harboring, transportation, provision, or obtaining of a person for labor or services, through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery.

Sex trafficking means the recruitment, harboring, transportation, provision, or obtaining of a person for the purpose of a commercial sex act.

Subcontract means any contract entered into by a subcontractor to furnish supplies or services for performance of a prime contract or a subcontract.

Subcontractor means any supplier, distributor, vendor, or firm that furnishes supplies or services to or for a prime contractor or another subcontractor.

United States means the 50 States, the District of Columbia, and outlying areas.

(b) Policy. The United States Government has adopted a policy prohibiting trafficking in persons including the trafficking-related activities of this clause. Contractors, contractor employees, and their agents shall not--

(1) Engage in severe forms of trafficking in persons during the period of performance of the contract;

(2) Procure commercial sex acts during the period of performance of the contract;

(3) Use forced labor in the performance of the contract;

(4) Destroy, conceal, confiscate, or otherwise deny access by an employee to the employee's identity or immigration documents, such as passports or drivers' licenses, regardless of issuing authority;

(5)(i) Use misleading or fraudulent practices during the recruitment of employees or offering of employment, such as failing to disclose, in a format and language understood by the employee or potential employee, basic information or making material misrepresentations during the recruitment of employees regarding the key terms and conditions of employment, including wages and fringe benefits, the location of work, the living conditions, housing and associated costs (if employer or agent provided or arranged), any significant costs to be charged to the employee or potential employee, and, if applicable, the hazardous nature of the work;

(ii) Use recruiters that do not comply with local labor laws of the country in which the recruiting takes place;

(6) Charge employees or potential employees recruitment fees;

(7)(i) Fail to provide return transportation or pay for the cost of return transportation upon the end of employment--

(A) For an employee who is not a national of the country in which the work is taking place and who was brought into that country for the purpose of working on a U.S. Government contract or subcontract (for portions of contracts performed outside the United States); or

(B) For an employee who is not a United States national and who was brought into the United States for the purpose of working on a U.S. Government contract or subcontract, if the payment of such costs is required under existing temporary worker programs or pursuant to a written agreement with the employee (for portions of contracts performed inside the United States); except that--

(ii) The requirements of paragraphs (b)(7)(i) of this clause shall not apply to an employee who is--

(A) Legally permitted to remain in the country of employment and who chooses to do so; or

(B) Exempted by an authorized official of the contracting agency from the requirement to provide return transportation or pay for the cost of return transportation;

(iii) The requirements of paragraph (b)(7)(i) of this clause are modified for a victim of trafficking in persons who is seeking victim services or legal redress in the country of employment, or for a witness in an enforcement action related to trafficking in persons. The contractor shall provide the return transportation or pay the cost of return transportation in a way that does not obstruct the victim services, legal redress, or witness activity. For example, the contractor shall not only offer return transportation to a witness at a time when the witness is still needed to testify. This paragraph does not apply when the exemptions at paragraph (b)(7)(ii) of this clause apply.

(8) Provide or arrange housing that fails to meet the host country housing and safety standards; or

(9) If required by law or contract, fail to provide an employment contract, recruitment agreement, or other required work document in writing. Such written work document shall be in a language the employee understands. If the employee must relocate to perform the work, the work document shall be provided to the employee at least five days prior to the employee relocating. The employee's work document shall include, but is not limited to, details about work description, wages, prohibition on charging recruitment fees, work location(s), living accommodations and associated costs, time off, roundtrip transportation arrangements, grievance process, and the content of applicable laws and regulations that prohibit trafficking in persons.

(c) Contractor requirements. The Contractor shall--

(1) Notify its employees and agents of--

(i) The United States Government's policy prohibiting trafficking in persons, described in paragraph (b) of this clause; and

(ii) The actions that will be taken against employees or agents for violations of this policy. Such actions for employees may include, but are not limited to, removal from the contract, reduction in benefits, or termination of employment; and

(2) Take appropriate action, up to and including termination, against employees, agents, or subcontractors that violate the policy in paragraph (b) of this clause.

(d) Notification.

(1) The Contractor shall inform the Contracting Officer and the agency Inspector General immediately of--

(i) Any credible information it receives from any source (including host country law enforcement) that alleges a Contractor employee, subcontractor, subcontractor employee, or their agent has engaged in conduct that violates the policy in paragraph (b) of this clause (see also 18 U.S.C. 1351, Fraud in Foreign Labor Contracting, and 52.203-13(b)(3)(i)(A), if that clause is included in the solicitation or contract, which requires disclosure to the agency Office of the Inspector General when the Contractor has credible evidence of fraud); and

(ii) Any actions taken against a Contractor employee, subcontractor, subcontractor employee, or their agent pursuant to this clause.

(2) If the allegation may be associated with more than one contract, the Contractor shall inform the contracting officer for the contract with the highest dollar value.

(e) Remedies. In addition to other remedies available to the Government, the Contractor's failure to comply with the requirements of paragraphs (c), (d), (g), (h), or (i) of this clause may result in--

(1) Requiring the Contractor to remove a Contractor employee or employees from the performance of the contract;

(2) Requiring the Contractor to terminate a subcontract;

(3) Suspension of contract payments until the Contractor has taken appropriate remedial action;

(4) Loss of award fee, consistent with the award fee plan, for the performance period in which the Government determined Contractor non-compliance;

(5) Declining to exercise available options under the contract;

(6) Termination of the contract for default or cause, in accordance with the termination clause of this contract; or

(7) Suspension or debarment.

(f) Mitigating and aggravating factors. When determining remedies, the Contracting Officer may consider the following:

(1) Mitigating factors. The Contractor had a Trafficking in Persons compliance plan or an awareness program at the time of the violation, was in compliance with the plan, and has taken appropriate remedial actions for the violation, that may include reparation to victims for such violations.

(2) Aggravating factors. The Contractor failed to abate an alleged violation or enforce the requirements of a compliance plan, when directed by the Contracting Officer to do so.

(g) Full cooperation. (1) The Contractor shall, at a minimum--

(i) Disclose to the agency Inspector General information sufficient to identify the nature and extent of an offense and the individuals responsible for the conduct;

(ii) Provide timely and complete responses to Government auditors' and investigators' requests for documents;

(iii) Cooperate fully in providing reasonable access to its facilities and staff (both inside and outside the U.S.) to allow contracting agencies and other responsible Federal agencies to conduct audits, investigations, or other actions to ascertain compliance with the Trafficking Victims Protection Act of 2000 (22 U.S.C. chapter 78), E.O. 13627, or any other applicable law or regulation establishing restrictions on trafficking in persons, the procurement of commercial sex acts, or the use of forced labor; and

(iv) Protect all employees suspected of being victims of or witnesses to prohibited activities, prior to returning to the country from which the employee was recruited, and shall not prevent or hinder the ability of these employees from cooperating fully with Government authorities.

(2) The requirement for full cooperation does not foreclose any Contractor rights arising in law, the FAR, or the terms of the contract. It does not--

- (i) Require the Contractor to waive its attorney-client privilege or the protections afforded by the attorney work product doctrine;
- (ii) Require any officer, director, owner, employee, or agent of the Contractor, including a sole proprietor, to waive his or her attorney client privilege or Fifth Amendment rights; or
- (iii) Restrict the Contractor from--
 - (A) Conducting an internal investigation; or
 - (B) Defending a proceeding or dispute arising under the contract or related to a potential or disclosed violation.
- (h) Compliance plan. (1) This paragraph (h) applies to any portion of the contract that--
 - (i) Is for supplies, other than commercially available off-the-shelf items, acquired outside the United States, or services to be performed outside the United States; and
 - (ii) Has an estimated value that exceeds \$550,000.
- (2) The Contractor shall maintain a compliance plan during the performance of the contract that is appropriate--
 - (i) To the size and complexity of the contract; and
 - (ii) To the nature and scope of the activities to be performed for the Government, including the number of non-United States citizens expected to be employed and the risk that the contract or subcontract will involve services or supplies susceptible to trafficking in persons.
- (3) Minimum requirements. The compliance plan must include, at a minimum, the following:
 - (i) An awareness program to inform contractor employees about the Government's policy prohibiting trafficking-related activities described in paragraph (b) of this clause, the activities prohibited, and the actions that will be taken against the employee for violations. Additional information about Trafficking in Persons and examples of awareness programs can be found at the Web site for the Department of State's Office to Monitor and Combat Trafficking in Persons at <http://www.state.gov/j/tip/>.
 - (ii) A process for employees to report, without fear of retaliation, activity inconsistent with the policy prohibiting trafficking in persons, including a means to make available to all employees and potential employees the hotline phone number of the Global Human Trafficking Hotline at 1-844-888-FREE and its email address at help@befree.org.
 - (iii) A recruitment and wage plan that only permits the use of recruitment companies with trained employees, prohibits charging recruitment fees to the employee or potential employee, and ensures that wages meet applicable host-country legal requirements or explains any variance.
 - (iv) A housing plan, if the Contractor or subcontractor intends to provide or arrange housing, that ensures that the housing meets host-country housing and safety standards.
 - (v) Procedures to prevent agents and subcontractors at any tier and at any dollar value from engaging in trafficking in persons (including activities in paragraph (b) of this clause) and to monitor, detect, and terminate any agents, subcontracts, or subcontractor employees that have engaged in such activities.
- (4) Posting.
 - (i) The Contractor shall post the relevant contents of the compliance plan, no later than the initiation of contract performance, at the workplace (unless the work is to be performed in the field or not in a fixed location) and on the

Contractor's Web site (if one is maintained). If posting at the workplace or on the Web site is impracticable, the Contractor shall provide the relevant contents of the compliance plan to each worker in writing.

(ii) The Contractor shall provide the compliance plan to the Contracting Officer upon request.

(5) Certification. Annually after receiving an award, the Contractor shall submit a certification to the Contracting Officer that--

(i) It has implemented a compliance plan to prevent any prohibited activities identified at paragraph (b) of this clause and to monitor, detect, and terminate any agent, subcontract or subcontractor employee engaging in prohibited activities; and

(ii) After having conducted due diligence, either--

(A) To the best of the Contractor's knowledge and belief, neither it nor any of its agents, subcontractors, or their agents is engaged in any such activities; or

(B) If abuses relating to any of the prohibited activities identified in paragraph (b) of this clause have been found, the Contractor or subcontractor has taken the appropriate remedial and referral actions.

(i) Subcontracts. (1) The Contractor shall include the substance of this clause, including this paragraph (i), in all subcontracts and in all contracts with agents. The requirements in paragraph (h) of this clause apply only to any portion of the subcontract that--

(i) Is for supplies, other than commercially available off-the-shelf items, acquired outside the United States, or services to be performed outside the United States; and

(ii) Has an estimated value that exceeds \$550,000.

(2) If any subcontractor is required by this clause to submit a certification, the Contractor shall require submission prior to the award of the subcontract and annually thereafter. The certification shall cover the items in paragraph (h)(5) of this clause.

(End of clause)

52.223-3 HAZARDOUS MATERIAL IDENTIFICATION AND MATERIAL SAFETY DATA (FEB 2021)

(a) "Hazardous material", as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No. 313 (including revisions adopted during the term of the contract).

(b) The offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Material Safety Data Sheet submitted under this contract.

Material (if none, insert None)	Identification No.
—	—
—	—
—	—

(c) This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.

(d) The apparently successful offeror agrees to submit, for each item as required prior to award, a Material Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No. 313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with Federal Standard No. 313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Material Safety Data Sheet prior to award may result in the apparently successful offeror being considered nonresponsible and ineligible for award.

(e) If, after award, there is a change in the composition of the item(s) or a revision to Federal Standard No. 313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause, the Contractor shall promptly notify the Contracting Officer and resubmit the data.

(f) Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.

(g) Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.

(h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:

(1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to--

(i) Apprise personnel of the hazards to which they may be exposed in using, handling, packaging, transporting, or disposing of hazardous materials;

(ii) Obtain medical treatment for those affected by the material; and

(iii) Have others use, duplicate, and disclose the data for the Government for these purposes.

(2) To use, duplicate, and disclose data furnished under this clause, in accordance with subparagraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.

(3) The Government is not precluded from using similar or identical data acquired from other sources.

(End of clause)

52.228-15 PERFORMANCE AND PAYMENT BONDS--CONSTRUCTION (JUN 2020)

(a) Definitions. As used in this clause--

Original contract price means the award price of the contract; or, for requirements contracts, the price payable for the estimated total quantity; or, for indefinite-quantity contracts, the price payable for the specified minimum quantity. Original contract price does not include the price of any options, except those options exercised at the time of contract award.

(b) Amount of required bonds. Unless the resulting contract price is valued at or below the threshold specified in Federal Acquisition Regulation 28.102-1(a) on the date of award of this contract, the successful offeror shall furnish performance and payment bonds to the Contracting Officer as follows:

(1) Performance bonds (Standard Form 25). The penal amount of performance bonds at the time of contract award shall be 100 percent of the original contract price.

(2) Payment Bonds (Standard Form 25-A). The penal amount of payment bonds at the time of contract award shall be 100 percent of the original contract price.

(3) Additional bond protection. (i) The Government may require additional performance and payment bond protection if the contract price is increased. The increase in protection generally will equal 100 percent of the increase in contract price.

(ii) The Government may secure the additional protection by directing the Contractor to increase the penal amount of the existing bond or to obtain an additional bond.

(c) Furnishing executed bonds. The Contractor shall furnish all executed bonds, including any necessary reinsurance agreements, to the Contracting Officer, within the time period specified in the Bid Guarantee provision of the solicitation, or otherwise specified by the Contracting Officer, but in any event, before starting work.

(d) Surety or other security for bonds. The bonds shall be in the form of firm commitment, supported by corporate sureties whose names appear on the list contained in Treasury Department Circular 570, individual sureties, or by other acceptable security such as postal money order, certified check, cashier's check, irrevocable letter of credit, or, in accordance with Treasury Department regulations, certain bonds or notes of the United States. Treasury Circular 570 is published in the Federal Register or may be obtained from the U.S. Department of the Treasury, Financial Management Service, Surety Bond Branch, 3700 East West Highway, Room 6F01, Hyattsville, MD 20782. Or via the internet at <http://www.fms.treas.gov/c570/>.

(e) Notice of subcontractor waiver of protection (40 U.S.C. 3133(c)). Any waiver of the right to sue on the payment bond is void unless it is in writing, signed by the person whose right is waived, and executed after such person has first furnished labor or material for use in the performance of the contract.

(End of clause)

52.232-16 PROGRESS PAYMENTS (NOV 2021)

The Government will make progress payments to the Contractor when requested as work progresses, but not more frequently than monthly, in amounts of \$2,500 or more approved by the Contracting Officer, under the following conditions:

(a) Computation of amounts.

(1) Unless the Contractor requests a smaller amount, the Government will compute each progress payment as 80 percent of the Contractor's total costs incurred under this contract whether or not actually paid, plus financing payments to subcontractors (see paragraph (j) of this clause), less the sum of all previous progress payments made by the Government under this contract. The Contracting Officer will consider cost of money that would be allowable under Federal Acquisition Regulation (FAR) 31.205-10 as an incurred cost for progress payment purposes.

(2) The amount of financing and other payments for supplies and services purchased directly for the contract are limited to the amounts that have been paid by cash, check, or other forms of payment, or that are determined due and will be paid to subcontractors--

- (i) In accordance with the terms and conditions of a subcontract or invoice; and
 - (ii) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government.
- (3) The Government will exclude accrued costs of Contractor contributions under employee pension plans until actually paid unless--
- (i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and
 - (ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's total costs for progress payments until paid).
- (4) The Contractor shall not include the following in total costs for progress payment purposes in paragraph (a)(1) of this clause:
- (i) Costs that are not reasonable, allocable to this contract, and consistent with sound and generally accepted accounting principles and practices.
 - (ii) Costs incurred by subcontractors or suppliers.
 - (iii) Costs ordinarily capitalized and subject to depreciation or amortization except for the properly depreciated or amortized portion of such costs.
 - (iv) Payments made or amounts payable to subcontractors or suppliers, except for --
- (A) Completed work, including partial deliveries, to which the Contractor has acquired title; and
 - (B) Work under cost-reimbursement or time-and-material subcontracts to which the Contractor has acquired title.
- (5) The amount of unliquidated progress payments may exceed neither (i) the progress payments made against incomplete work (including allowable unliquidated progress payments to subcontractors) nor
- (ii) the value, for progress payment purposes, of the incomplete work. Incomplete work shall be considered to be the supplies and services required by this contract, for which delivery and invoicing by the Contractor and acceptance by the Government are incomplete.
- (6) The total amount of progress payments shall not exceed 80 percent of the total contract price.
- (7) If a progress payment or the unliquidated progress payments exceed the amounts permitted by subparagraphs (a)(4) or (a)(5) of this clause, the Contractor shall repay the amount of such excess to the Government on demand.
- (8) Notwithstanding any other terms of the contract, the Contractor agrees not to request progress payments in dollar amounts of less than \$2,500. The Contracting Officer may make exceptions.
- (9) The costs applicable to items delivered, invoiced, and accepted shall not include costs in excess of the contract price of the items.
- (b) Liquidation. Except as provided in the Termination for Convenience of the Government clause, all progress payments shall be liquidated by deducting from any payment under this contract, other than advance or progress payments, the unliquidated progress payments, or 80 percent of the amount invoiced, whichever is less. The Contractor shall repay to the Government any amounts required by a retroactive price reduction, after computing liquidations and payments on past invoices at the reduced prices and adjusting the unliquidated progress payments accordingly. The Government reserves the right to unilaterally change from the ordinary liquidation rate to an alternate rate when deemed appropriate for proper contract financing.

(c) Reduction or suspension. The Contracting Officer may reduce or suspend progress payments, increase the rate of liquidation, or take a combination of these actions, after finding on substantial evidence any of the following conditions:

(1) The Contractor failed to comply with any material requirement of this contract (which includes paragraphs (f) and (g) of this clause).

(2) Performance of this contract is endangered by the Contractor's --

(i) Failure to make progress or

(ii) Unsatisfactory financial condition.

(3) Inventory allocated to this contract substantially exceeds reasonable requirements.

(4) The Contractor is delinquent in payment of the costs of performing this contract in the ordinary course of business.

(5) The fair value of the undelivered work is less than the amount of unliquidated progress payments for that work.

(6) The Contractor is realizing less profit than that reflected in the establishment of any alternate liquidation rate in paragraph (b) of this clause, and that rate is less than the progress payment rate stated in subparagraph (a)(1) of this clause.

(d) Title.

(1) Title to the property described in this paragraph (d) shall vest in the Government. Vestiture shall be immediately upon the date of this contract, for property acquired or produced before that date. Otherwise, vestiture shall occur when the property is or should have been allocable or properly chargeable to this contract.

(2) "Property," as used in this clause, includes all of the below-described items acquired or produced by the Contractor that are or should be allocable or properly chargeable to this contract under sound and generally accepted accounting principles and practices.

(i) Parts, materials, inventories, and work in process;

(ii) Special tooling and special test equipment to which the Government is to acquire title;

(iii) Nondurable (i.e., noncapital) tools, jigs, dies, fixtures, molds, patterns, taps, gauges, test equipment, and other similar manufacturing aids, title to which would not be obtained as special tooling under paragraph (d) (2)(ii) of this clause; and

(iv) Drawings and technical data, to the extent the Contractor or subcontractors are required to deliver them to the Government by other clauses of this contract.

(3) Although title to property is in the Government under this clause, other applicable clauses of this contract; e.g., the termination clauses, shall determine the handling and disposition of the property.

(4) The Contractor may sell any scrap resulting from production under this contract without requesting the Contracting Officer's approval, but the proceeds shall be credited against the costs of performance.

(5) To acquire for its own use or dispose of property to which title is vested in the Government under this clause, the Contractor must obtain the Contracting Officer's advance approval of the action and the terms. The Contractor shall

(i) exclude the allocable costs of the property from the costs of contract performance, and (ii) repay to the

Government any amount of unliquidated progress payments allocable to the property. Repayment may be by cash or credit memorandum.

(6) When the Contractor completes all of the obligations under this contract, including liquidation of all progress payments, title shall vest in the Contractor for all property (or the proceeds thereof) not--

(i) Delivered to, and accepted by, the Government under this contract; or

(ii) Incorporated in supplies delivered to, and accepted by, the Government under this contract and to which title is vested in the Government under this clause.

(7) The terms of this contract concerning liability for Government-furnished property shall not apply to property to which the Government acquired title solely under this clause.

(e) Risk of loss. Before delivery to and acceptance by the Government, the Contractor shall bear the risk of loss for property, the title to which vests in the Government under this clause, except to the extent the Government expressly assumes the risk. The Contractor shall repay the Government an amount equal to the unliquidated progress payments that are based on costs allocable to property that is lost (see 45.101).

(f) Control of costs and property. The Contractor shall maintain an accounting system and controls adequate for the proper administration of this clause.

(g) Reports, forms, and access to records. (1) The Contractor shall promptly furnish reports, certificates, financial statements, and other pertinent information (including estimates to complete) reasonably requested by the Contracting Officer for the administration of this clause. Also, the Contractor shall give the Government reasonable opportunity to examine and verify the Contractor's books, records, and accounts.

(2) The Contractor shall furnish estimates to complete that have been developed or updated within six months of the date of the progress payment request. The estimates to complete shall represent the Contractor's best estimate of total costs to complete all remaining contract work required under the contract. The estimates shall include sufficient detail to permit Government verification.

(3) Each Contractor request for progress payment shall:

(i) Be submitted on Standard Form 1443, Contractor's Request for Progress Payment, or the electronic equivalent as required by agency regulations, in accordance with the form instructions and the contract terms; and

(ii) Include any additional supporting documentation requested by the Contracting Officer.

(h) Special terms regarding default. If this contract is terminated under the Default clause, (i) the Contractor shall, on demand, repay to the Government the amount of unliquidated progress payments and (ii) title shall vest in the Contractor, on full liquidation of progress payments, for all property for which the Government elects not to require delivery under the Default clause. The Government shall be liable for no payment except as provided by the Default clause.

(i) Reservations of rights.

(1) No payment or vesting of title under this clause shall --

(i) Excuse the Contractor from performance of obligations under this contract or

(ii) Constitute a waiver of any of the rights or remedies of the parties under the contract.

(2) The Government's rights and remedies under this clause

(i) Shall not be exclusive but rather shall be in addition to any other rights and remedies provided by law or this contract and

(ii) Shall not be affected by delayed, partial, or omitted exercise of any right, remedy, power, or privilege, nor shall such exercise or any single exercise preclude or impair any further exercise under this clause or the exercise of any other right, power, or privilege of the Government.

(j) Financing payments to subcontractors. The financing payments to subcontractors mentioned in paragraphs (a)(1) and (a)(2) of this clause shall be all financing payments to subcontractors or divisions, if the following conditions are met:

(1) The amounts included are limited to--

(i) The unliquidated remainder of financing payments made; plus

(ii) Any unpaid subcontractor requests for financing payments.

(2) The subcontract or interdivisional order is expected to involve a minimum of approximately 6 months between the beginning of work and the first delivery; or, if the subcontractor is a small business concern, 4 months.

(3) If the financing payments are in the form of progress payments, the terms of the subcontract or interdivisional order concerning progress payments--

(i) Are substantially similar to the terms of this clause for any subcontractor that is a large business concern, or this clause with its Alternate I for any subcontractor that is a small business concern;

(ii) Are at least as favorable to the Government as the terms of this clause;

(iii) Are not more favorable to the subcontractor or division than the terms of this clause are to the Contractor;

(iv) Are in conformance with the requirements of FAR 32.504(e); and

(v) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if--

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(4) If the financing payments are in the form of performance-based payments, the terms of the subcontract or interdivisional order concerning payments--

(i) Are substantially similar to the Performance-Based Payments clause at FAR 52.232-32 and meet the criteria for, and definition of, performance-based payments in FAR Part 32;

(ii) Are in conformance with the requirements of FAR 32.504(f); and

(iii) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if--

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(5) If the financing payments are in the form of commercial product or commercial service financing payments, the terms of the subcontract or interdivisional order concerning payments--

(i) Are constructed in accordance with FAR 32.206(c) and included in a subcontract for a commercial product or commercial service purchase that meets the definition and standards for acquisition of commercial products and commercial services in FAR parts 2 and 12;

(ii) Are in conformance with the requirements of FAR 32.504(g); and

(iii) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if--

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(6) If financing is in the form of progress payments, the progress payment rate in the subcontract is the customary rate used by the contracting agency, depending on whether the subcontractor is or is not a small business concern.

(7) Concerning any proceeds received by the Government for property to which title has vested in the Government under the subcontract terms, the parties agree that the proceeds shall be applied to reducing any unliquidated financing payments by the Government to the Contractor under this contract.

(8) If no unliquidated financing payments to the Contractor remain, but there are unliquidated financing payments that the Contractor has made to any subcontractor, the Contractor shall be subrogated to all the rights the Government obtained through the terms required by this clause to be in any subcontract, as if all such rights had been assigned and transferred to the Contractor.

(9) To facilitate small business participation in subcontracting under this contract, the Contractor shall provide financing payments to small business concerns, in conformity with the standards for customary contract financing payments stated in Subpart 32.113. The Contractor shall not consider the need for such financing payments as a handicap or adverse factor in the award of subcontracts.

(k) Limitations on undefinitized contract actions. Notwithstanding any other progress payment provisions in this contract, progress payments may not exceed 80 percent of costs incurred on work accomplished under undefinitized contract actions. A "contract action" is any action resulting in a contract, as defined in Subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes. This limitation shall apply to the costs incurred, as computed in accordance with paragraph (a) of this clause, and shall remain in effect until the contract action is definitized. Costs incurred which are subject to this limitation shall be segregated on Contractor progress payment requests and invoices from those costs eligible for higher progress payment rates. For purposes of progress payment liquidation, as described in paragraph (b) of this clause, progress payments for undefinitized contract actions shall be liquidated at 80 percent of the amount invoiced for work performed under the undefinitized contract action as long as the contract action remains undefinitized. The amount of unliquidated progress payments for undefinitized contract actions shall not exceed 80 percent of the maximum liability of the Government under the undefinitized contract action or such lower limit specified elsewhere in the contract. Separate limits may be specified for separate actions.

(l) Due date. The designated payment office will make progress payments on the _____ (Contracting Officer insert date as prescribed by agency head; if not prescribed, insert "30th") day after the designated billing office receives a proper progress payment request. In the event that the Government requires an audit or other review of a specific progress payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date. Progress payments are considered contract financing and are not subject to the interest penalty provisions of the Prompt Payment Act.

(m) Progress payments under indefinite--delivery contracts. The Contractor shall account for and submit progress payment requests under individual orders as if the order constituted a separate contract, unless otherwise specified in this contract.

(End of clause)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

(End of clause)

Section 00 73 00 - Supplementary Conditions

WAGE DETERMINATION

"General Decision Number: DC20250002 05/30/2025

Superseded General Decision Number: DC20240002

State: District of Columbia

Construction Type: Building

County: District of Columbia Statewide.

BUILDING CONSTRUCTION PROJECTS (does not include single family homes or apartments up to and including 4 stories).

Note: Contracts subject to the Davis-Bacon Act are generally required to pay at least the applicable minimum wage rate required under Executive Order 14026 or Executive Order 13658. Please note that these Executive Orders apply to covered contracts entered into by the federal government that are subject to the Davis-Bacon Act itself, but do not apply to contracts subject only to the Davis-Bacon Related Acts, including those set forth at 29 CFR 5.1(a)(1).

If the contract is entered into on or after January 30, 2022, or the contract is renewed or extended (e.g., an option is exercised) on or after January 30, 2022:	. Executive Order 14026 generally applies to the contract. . The contractor must pay all covered workers at least \$17.75 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025.
If the contract was awarded on or between January 1, 2015 and January 29, 2022, and the contract is not renewed or extended on or after January 30, 2022:	. Executive Order 13658 generally applies to the contract. . The contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on that contract in 2025.

The applicable Executive Order minimum wage rate will be adjusted annually. If this contract is covered by one of the

Executive Orders and a classification considered necessary for performance of work on the contract does not appear on this wage determination, the contractor must still submit a conformance request.

Additional information on contractor requirements and worker protections under the Executive Orders is available at <http://www.dol.gov/whd/govcontracts>.

Modification Number	Publication Date
0	01/03/2025
1	01/10/2025
2	01/24/2025
3	02/14/2025
4	02/21/2025
5	05/30/2025

ASBE0024-007 10/01/2024

	Rates	Fringes
ASBESTOS WORKER/HEAT & FROST INSULATOR.....	\$ 40.77	20.17+a

Includes the application of all insulating materials, protective coverings, coatings and finishes to all types of mechanical systems

a. PAID HOLIDAYS: New Year's Day, Martin Luther King Day, Memorial Day, Independence Day, Labor Day, Veterans' Day, Thanksgiving Day, the day after Thanksgiving and Christmas Day provided the employee works the regular work day before and after the paid holiday.

ASBE0024-008 10/01/2024

	Rates	Fringes
ASBESTOS WORKER: HAZARDOUS MATERIAL HANDLER.....	\$ 24.46	10.19+a

Includes preparation, wetting, stripping, removal, scrapping, vacuuming, bagging and disposing of all insulation materials, whether they contain asbestos or not, from mechanical systems

a. PAID HOLIDAYS: New Year's Day, Martin Luther King Day, Memorial Day, Independence Day, Labor Day, Veterans' Day, Thanksgiving Day, the day after Thanksgiving and Christmas Day provided the employee works the regular work day before and after the paid holiday.

ASBE0024-014 10/01/2024

	Rates	Fringes
FIRESTOPPER.....	\$ 30.21	10.43+a

Includes the application of materials or devices within or around penetrations and openings in all rated wall or floor assemblies, in order to prevent the passage of fire, smoke of other gases. The application includes all components involved in creating the rated barrier at perimeter slab edges and exterior cavities, the head of gypsum board or concrete walls, joints between rated wall or floor components, sealing of penetrating items and blank openings.

a. PAID HOLIDAYS: New Year's Day, Martin Luther King Day, Memorial Day, Independence Day, Labor Day, Veterans' Day, Thanksgiving Day, the day after Thanksgiving and Christmas Day provided the employee works the regular work day before and after the paid holiday.

* BRDC0001-002 04/27/2025

	Rates	Fringes
BRICKLAYER.....	\$ 38.80	15.17

CARP0197-011 05/01/2024

	Rates	Fringes
CARPENTER, Includes Drywall Hanging, Form Work, and Soft Floor Laying-Carpet.....	\$ 34.41	14.33

CARP0219-001 05/01/2024

	Rates	Fringes
MILLWRIGHT.....	\$ 38.61	16.89

CARP0474-006 05/01/2024

	Rates	Fringes
PILEDRIVERMAN.....	\$ 36.60	14.47

ELEC0026-016 06/05/2023

	Rates	Fringes
ELECTRICIAN, Includes		

Installation of
HVAC/Temperature Controls.....\$ 53.00 21.35

ELEC0026-017 09/02/2024

	Rates	Fringes
ELECTRICAL INSTALLER (Sound & Communication Systems).....\$ 32.60		12.92

SCOPE OF WORK: Includes low voltage construction, installation, maintenance and removal of teledata facilities (voice, data and video) including outside plant, telephone and data inside wire, interconnect, terminal equipment, central offices, PABX, fiber optic cable and equipment, railroad communications, micro waves, VSAT, bypass, CATV, WAN (Wide area networks), LAN (Local area networks) and ISDN (Integrated systems digital network).

WORK EXCLUDED: The installation of computer systems in industrial applications such as assembly lines, robotics and computer controller manufacturing systems. The installation of conduit and/or raceways shall be installed by Inside Wiremen. On sites where there is no Inside Wireman employed, the Teledata Technician may install raceway or conduit not greater than 10 feet. Fire alarm work is excluded on all new construction sites or wherever the fire alarm system is installed in conduit. All HVAC control work.

ELEV0010-001 01/01/2025

	Rates	Fringes
ELEVATOR MECHANIC.....\$ 57.16		38.435+a+b

a. PAID HOLIDAYS: New Year's Day, Memorial Day, Independence Day, Labor Day, Veterans' Day, Thanksgiving Day, Christmas Day and the Friday after Thanksgiving.

b. VACATIONS: Employer contributes 8% of basic hourly rate for 5 years or more of service; 6% of basic hourly rate for 6 months to 5 years of service as vacation pay credit.

IRON0005-005 06/01/2024

	Rates	Fringes
IRONWORKER, STRUCTURAL AND ORNAMENTAL.....\$ 37.86		25.86

IRON0005-012 05/01/2024

	Rates	Fringes
IRONWORKER, REINFORCING.....	\$ 31.88	23.78

LAB00011-009 06/01/2024		

	Rates	Fringes
LABORER: Skilled.....	\$ 29.66	8.29

FOOTNOTE: Potmen, power tool operator, small machine operator, signalmen, laser beam operator, waterproofer (excluding roofing), open caisson, test pit, underpinning, pier hole and ditches, ladders and all work associated with lagging that is not expressly stated, strippers, operator of hand derricks, vibrator operators, pipe layers, or tile layers, operators of jackhammers, paving breakers, spaders or any machine that does the same general type of work, carpenter tenders, scaffold builders, operators of towmasters, scootcretes, buggymobiles and other machines of similar character, operators of tampers and rammers and other machines that do the same general type of work, whether powered by air, electric or gasoline, builders of trestle scaffolds over one tier high and sand blasters, power and chain saw operators used in clearing, installers of well points, wagon drill operators, acetylene burners and licensed powdermen, stake jumper, demolition.

* MARB0002-004 04/27/2025

	Rates	Fringes
MARBLE/STONE MASON.....	\$ 45.65	21.21

INCLUDING pointing, caulking and cleaning of All types of masonry, brick, stone and cement EXCEPT pointing, caulking, cleaning of existing masonry, brick, stone and cement (restoration work)

* MARB0003-006 04/27/2025

	Rates	Fringes
TERRAZZO WORKER/SETTER.....	\$ 34.34	14.20

* MARB0003-007 04/27/2025

	Rates	Fringes
TERRAZZO FINISHER.....	\$ 28.85	12.55

* MARB0003-008 04/27/2025

	Rates	Fringes
TILE SETTER.....	\$ 34.34	14.20

* MARB0003-009 04/27/2025

	Rates	Fringes
TILE FINISHER.....	\$ 28.85	12.55

PAIN0051-014 06/01/2023

	Rates	Fringes
GLAZIER		
Glazing Contracts \$2 million and under.....	\$ 30.52	13.85
Glazing Contracts over \$2 million.....	\$ 34.76	13.85

PAIN0051-015 06/01/2023

	Rates	Fringes
PAINTER		
Brush, Roller, Spray and Drywall Finisher.....	\$ 27.46	11.56

PLAS0891-005 07/01/2023

	Rates	Fringes
PLASTERER (Including Fireproofing).....	\$ 31.83	8.96

PLAS0891-006 02/01/2024

	Rates	Fringes
CEMENT MASON/CONCRETE FINISHER...	\$ 30.25	13.60

PLUM0005-010 08/01/2024

	Rates	Fringes
PLUMBER.....	\$ 51.25	22.46+a

a. PAID HOLIDAYS: Labor Day, Veterans' Day, Thanksgiving Day and the day after Thanksgiving, Christmas Day, New Year's Day, Martin Luther King's Birthday, Memorial Day and the Fourth of July.

 PLUM0602-008 08/01/2024

	Rates	Fringes
PIPEFITTER, Includes HVAC Pipe Installation.....	\$ 52.27	23.79+a

a. PAID HOLIDAYS: New Year's Day, Martin Luther King's
 Birthday, Memorial Day, Independence Day, Labor Day,
 Veterans' Day, Thanksgiving Day and the day after
 Thanksgiving and Christmas Day.

 ROOF0030-016 07/01/2024

	Rates	Fringes
ROOFER.....	\$ 34.76	14.91

 SFDC0669-002 01/01/2025

	Rates	Fringes
SPRINKLER FITTER (Fire Sprinklers).....	\$ 42.32	26.39

 SHEE0100-015 11/01/2023

	Rates	Fringes
SHEET METAL WORKER (Including HVAC Duct Installation).....	\$ 47.92	22.72+a

a. PAID HOLIDAYS: New Year's Day, Martin Luther King's
 Birthday, Memorial Day, Independence Day, Labor Day,
 Veterans Day, Thanksgiving Day and Christmas Day

 * SUDC2009-003 05/19/2009

	Rates	Fringes
LABORER: Common or General.....	\$ 13.04 **	2.80
LABORER: Mason Tender - Cement/Concrete.....	\$ 15.40 **	2.85

LABORER: Mason Tender for
 pointing, caulking, cleaning
 of existing masonry, brick,
 stone and cement structures
 (restoration work); excludes
 pointing, caulking and

cleaning of new or
replacement masonry, brick,
stone and cement.....\$ 11.67 **

POINTER, CAULKER, CLEANER,
Includes pointing, caulking,
cleaning of existing masonry,
brick, stone and cement
structures (restoration
work); excludes pointing,
caulking, cleaning of new or
replacement
masonry, brick, stone or
cement.....\$ 18.88

WELDERS - Receive rate prescribed for craft performing
operation to which welding is incidental.

=====

** Workers in this classification may be entitled to a higher
minimum wage under Executive Order 14026 (\$17.75) or 13658
(\$13.30). Please see the Note at the top of the wage
determination for more information. Please also note that the
minimum wage requirements of Executive Order 14026 are not
currently being enforced as to any contract or subcontract to
which the states of Texas, Louisiana, or Mississippi, including
their agencies, are a party.

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave
for Federal Contractors applies to all contracts subject to the
Davis-Bacon Act for which the contract is awarded (and any
solicitation was issued) on or after January 1, 2017. If this
contract is covered by the EO, the contractor must provide
employees with 1 hour of paid sick leave for every 30 hours
they work, up to 56 hours of paid sick leave each year.
Employees must be permitted to use paid sick leave for their
own illness, injury or other health-related needs, including
preventive care; to assist a family member (or person who is
like family to the employee) who is ill, injured, or has other
health-related needs, including preventive care; or for reasons
resulting from, or to assist a family member (or person who is
like family to the employee) who is a victim of, domestic
violence, sexual assault, or stalking. Additional information
on contractor requirements and worker protections under the EO
is available at
<https://www.dol.gov/agencies/whd/government-contracts>.

Unlisted classifications needed for work not included within
the scope of the classifications listed may be added after
award only as provided in the labor standards contract clauses
(29CFR 5.5 (a) (1) (iii)).

The body of each wage determination lists the classifications and wage rates that have been found to be prevailing for the type(s) of construction and geographic area covered by the wage determination. The classifications are listed in alphabetical order under rate identifiers indicating whether the particular rate is a union rate (current union negotiated rate), a survey rate, a weighted union average rate, a state adopted rate, or a supplemental classification rate.

Union Rate Identifiers

A four-letter identifier beginning with characters other than ""SU"", ""UAVG"", ?SA?, or ?SC? denotes that a union rate was prevailing for that classification in the survey. Example: PLUM0198-005 07/01/2024. PLUM is an identifier of the union whose collectively bargained rate prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next number, 005 in the example, is an internal number used in processing the wage determination. The date, 07/01/2024 in the example, is the effective date of the most current negotiated rate.

Union prevailing wage rates are updated to reflect all changes over time that are reported to WHD in the rates in the collective bargaining agreement (CBA) governing the classification.

Union Average Rate Identifiers

The UAVG identifier indicates that no single rate prevailed for those classifications, but that 100% of the data reported for the classifications reflected union rates. EXAMPLE: UAVG-OH-0010 01/01/2024. UAVG indicates that the rate is a weighted union average rate. OH indicates the State of Ohio. The next number, 0010 in the example, is an internal number used in producing the wage determination. The date, 01/01/2024 in the example, indicates the date the wage determination was updated to reflect the most current union average rate.

A UAVG rate will be updated once a year, usually in January, to reflect a weighted average of the current rates in the collective bargaining agreements on which the rate is based.

Survey Rate Identifiers

The ""SU"" identifier indicates that either a single non-union rate prevailed (as defined in 29 CFR 1.2) for this classification in the survey or that the rate was derived by computing a weighted average rate based on all the rates

reported in the survey for that classification. As a weighted average rate includes all rates reported in the survey, it may include both union and non-union rates. Example: SUFL2022-007 6/27/2024. SU indicates the rate is a single non-union prevailing rate or a weighted average of survey data for that classification. FL indicates the State of Florida. 2022 is the year of the survey on which these classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 6/27/2024 in the example, indicates the survey completion date for the classifications and rates under that identifier.

?SU? wage rates typically remain in effect until a new survey is conducted. However, the Wage and Hour Division (WHD) has the discretion to update such rates under 29 CFR 1.6(c)(1).

State Adopted Rate Identifiers

The ""SA"" identifier indicates that the classifications and prevailing wage rates set by a state (or local) government were adopted under 29 C.F.R 1.3(g)-(h). Example: SAME2023-007 01/03/2024. SA reflects that the rates are state adopted. ME refers to the State of Maine. 2023 is the year during which the state completed the survey on which the listed classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 01/03/2024 in the example, reflects the date on which the classifications and rates under the ?SA? identifier took effect under state law in the state from which the rates were adopted.

WAGE DETERMINATION APPEALS PROCESS

1) Has there been an initial decision in the matter? This can be:

- a) a survey underlying a wage determination
- b) an existing published wage determination
- c) an initial WHD letter setting forth a position on a wage determination matter
- d) an initial conformance (additional classification and rate) determination

On survey related matters, initial contact, including requests for summaries of surveys, should be directed to the WHD Branch of Wage Surveys. Requests can be submitted via email to davisbaconinfo@dol.gov or by mail to:

Branch of Wage Surveys
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.

Washington, DC 20210

Regarding any other wage determination matter such as conformance decisions, requests for initial decisions should be directed to the WHD Branch of Construction Wage Determinations. Requests can be submitted via email to BCWD-Office@dol.gov or by mail to:

Branch of Construction Wage Determinations
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

2) If an initial decision has been issued, then any interested party (those affected by the action) that disagrees with the decision can request review and reconsideration from the Wage and Hour Administrator (See 29 CFR Part 1.8 and 29 CFR Part 7). Requests for review and reconsideration can be submitted via email to dba.reconsideration@dol.gov or by mail to:

Wage and Hour Administrator
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

The request should be accompanied by a full statement of the interested party's position and any information (wage payment data, project description, area practice material, etc.) that the requestor considers relevant to the issue.

3) If the decision of the Administrator is not favorable, an interested party may appeal directly to the Administrative Review Board (formerly the Wage Appeals Board). Write to:

Administrative Review Board
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210.

=====

END OF GENERAL DECISION"